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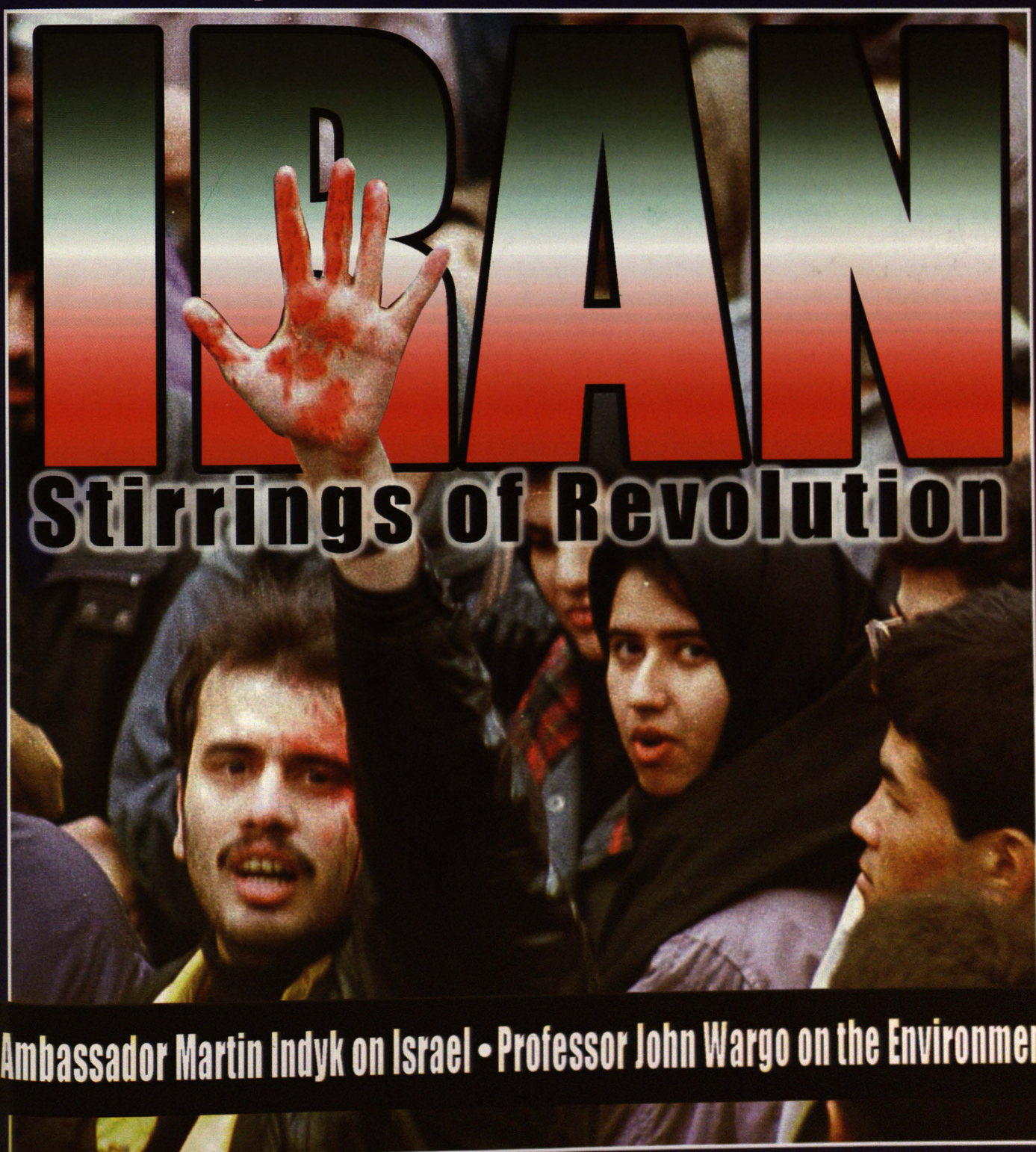

IRAN
Stirrings of Revolution

Ambassador Martin Indyk on Israel • Professor John Wargo on the Environment

thank you

The Politic gratefully acknowledges the support of the Yale Institution for Social and Policy Studies, the Yale Center for International and Area Studies, and International Security Studies. Their generosity and commitment have helped make this magazine possible.

This publication was made possible in part by the Castle Publications Fund. John K. Castle endowed the fund in memory of his ancestor, James Pierpont, one of Yale's original founders.

The Politic would also like to extend its sincere gratitude to its Board of Advisers, whose gudiance has played a large role in shaping the development and expanding the influence of The Politic.

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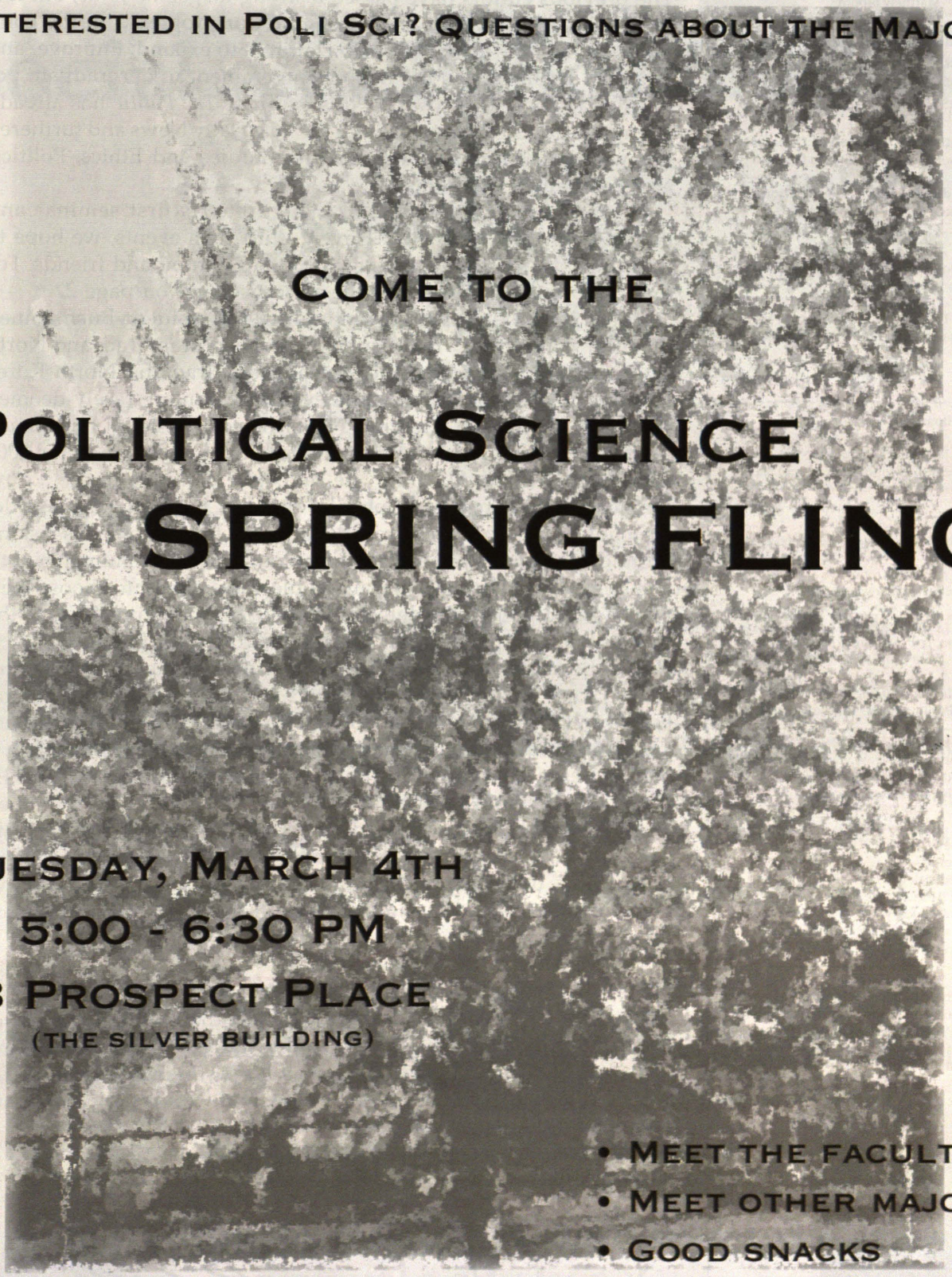
The POLITIC



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Photographs of Amir Afkhami appear courtesy of Peter van Agtmael. Photographs of John Wargo appear courtesy of Sam Asher. All other photographs appear courtesy of AFP.

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Dear Reader,

In January of this year, *The Politic* elected its third editorial board. The previous editors have passed a strong magazine to us, but it is a young magazine with much potential for progress. In the coming year, the new leadership will continue to expand, improve, and establish *The Politic* as the nation's preeminent undergraduate political magazine. It is towards this end that *The Politic* has already strengthened its relationship with the Yale Daily News and furthered ties with Yale's International Security Studies and Ethics, Politics, and Economics programs.

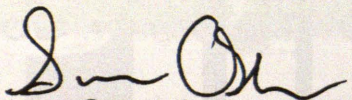
Furthermore, *The Politic* will inaugurate its first seminar and banquet on April 12 in New Haven. With such events, we hope to introduce the magazine to a new group of alumni and friends. For more information, please see the advertisement on page 22.

In his 2002 State of the Union address, President Bush coined the term "axis of evil" to describe the states of Iran, Iraq, and North Korea. In the 13 months since the address, Iraq and North Korea have dominated the news, while events in Iran are rarely deemed worthy of U.S. media attention. Nevertheless, President Bush made a point to mention the current political situation in Iran in his 2003 State of the Union. "In Iran," he said, "we continue to see a government that represses its people, pursues weapons of mass destruction, and supports terror. We also see Iranian citizens risking intimidation and death as they speak out for liberty, human rights, and democracy. Iranians, like all people, have a right to choose their own government, and determine their own destiny — and the United States supports their aspirations to live in freedom."

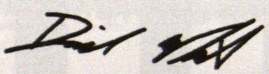
In this issue, we explore the lowest-profile member of Bush's "axis." Amir Afkhami, the William C. and Ruth A. Gaines Doctoral Fellow in History at Yale, sat down with us on January 30 to discuss a variety of issues facing the Islamic Republic. David Menashri, a Senior Research Fellow at The Moshe Dayan Center for Middle Eastern Studies and a professor at Tel Aviv University, also discussed the implications of the impending war with Iraq and the growing necessity of a secular republic. In addition, Tyler Golson and Shannon O'Pray, both Yale undergraduates, contributed comprehensive pieces evaluating Shi'i Islam and the effects of U.S. policy towards Iran, respectively.

The insights of these four contributors should provide a comprehensive look at modern day Iran. Given that Iran may soon be flanked by two fledgling democracies and that over 65 percent of Iran's 70 million inhabitants are under the age of 25, positive reform appears increasingly likely in this oppressive, intolerant regime. We certainly hope this is the case, and we sincerely hope that you enjoy this issue.

Sincerely,



Sam Asher



David White

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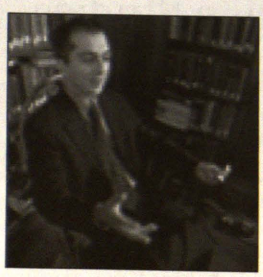
The POLITIC

Winter 2002



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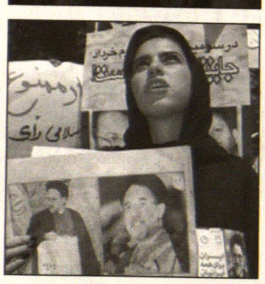

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letters to the editor:

Re: Achieving Equity

To the editor:

Mary Clark's piece in your last issue about achieving equality in education does a nice job of pointing out the inequalities in urban public education in many big cities. However, in her analysis, Clark misses the bigger picture in school funding. While the gap between wealthy schools in the suburbs and the failing schools of our inner cities may be shrinking as she notes, true equality cannot come without more funding from the federal government.

Where should this money come from? I suggest that we take it from President Bush's newest tax cut proposal. Instead of using the now non-existent budget surplus to line the pockets of the wealthy, let's give it back to those who really need it by funneling it into America's neediest public schools. What better way is there to give back to the American people than to give the underprivileged a chance to succeed?

Increased funding for education will not occur unless the public speaks up and makes education a right instead of a privilege. Students, the ones most directly influenced by school funding decisions, must be the ones to speak out. It is our education and our future at stake, and students must play a key role in lobbying for increased school funding.

-Paul Levin '05

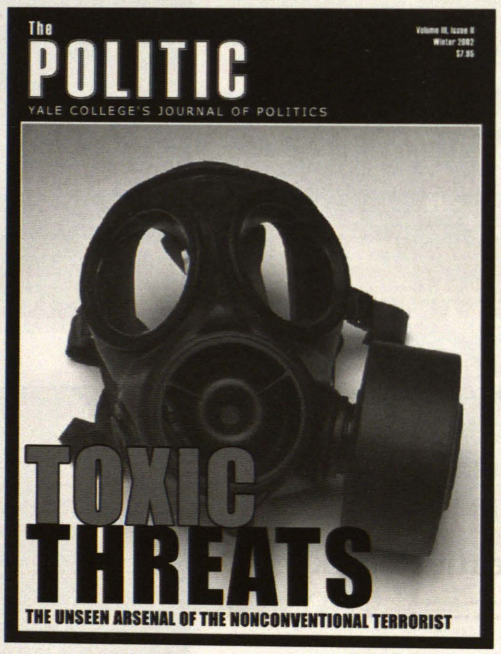
The writer is the Editor-in-Chief of Our Education.

Re: Fundamentalism

To the editor:

A friend of mine directed my attention to an article written by Mr. Tyler Golson on Fundamentalism and the subsequent role played by US policy. In some ways, I found his argument articulate and well-researched, but I believe his conclusions are based on an inherently faulty, even biased, perspective.

It seems an all too common mistake among Academia these days to "Orientalize" the Middle East and Muslims by denying them agency in their own fates. Edward Said's book, "Orientalism", posited the idea that the militarily dominant West uses its academic and media institutions to subjugate the people of the Middle East by "figuring them out" and, in a sense, cataloguing them as an alien "other". This process allows the West to demystify the "Orient", which becomes the subject of study and detached curiosity rather than a legitimate threat to Western interests. The maintenance of "Orientalist" institutions also allows Westerners to reaffirm their own identities as members of the dominant culture.



All of this is to say, Tyler's assumption that US policy decisions are the ultimate cause of the rise of Fundamentalism is totally dismissive of the role of Middle Eastern Muslims in creating this plague upon themselves. Islam is, and always has been, an intensely personal religion, full of meaning and complexity for he who seeks it, and it cannot be easily distorted or manipulated by outside political forces.

If Muslims become terrorists, it is their own misguided choice to do so, and it has nothing to do with misdeeds or influence of the "Occident". To suggest otherwise is to imply that the Middle East is so weak that it could not even be the cause of its own problems!

As a Muslim, I feel compelled to condemn the ideas and motivations behind all forms of terrorism. But I refuse to condemn an entire people or nation, even the United States, for the actions of a deranged few.

-Sanjay Shetty
Binghamton University

Re: Blaming the Bourgeoisie

To the editor:

The opinion piece by Philip Shaw ("Blaming the bourgeoisie," Winter 2002) fails at its attempt to prove that the middle class "destroyed liberal education at Yale." Quite simply, there is no proof that liberal education at Yale has been destroyed. Shaw argues that disciplines "such as history or classics" have been marginalized by "the indiscriminate admission of the middle classes." History is the most popular major at Yale. While lamenting an alleged decline in the study of history, the column virtually ignores the actual history of Yale. For example, considering Yale a hundred years ago, Shaw writes, "Such useful arts as engineering and economics would probably not have been allowed in these hallowed halls." Probably? The disciplines were either taught or not taught. In fact, Yale added engineering in 1852 and awarded the first engineering Ph.D. in the United States to J.W. Gibbs in 1863.

In his history of Yale College, George Wilson Pierson writes the following about economics in the years before World War I: "Economics ... enjoyed an increasing undergraduate vogue. Next to English more men majored in economics than in any other subject." The col-

umn concludes by accusing "the Left" of hypocrisy for supporting liberal education today "without realizing the social ills which necessarily accompanied it" in the past. What Shaw really means by "liberal education" in most of the column is classical education—Greek, Latin, and theology—and few on the Left are calling for the reinstitution of this limited curriculum.

The decline of classical education, the Western norm from the time of the Renaissance, was initiated by the development of science and the new educational needs of industrial society, not by Yale's decision to admit middle class students.

-Benoit Bewley '05

Editors' note: It turns out Shaw is not even enrolled in Yale College, let alone a "junior in Ezra Stiles." Over the past two years, Shaw published four columns in the Yale Daily News, *"Blaming the Bourgeoisie" in* The Politic, *and pulled the same stunt at Harvard. For more information on Shaw, check out the February 13 issue of the* Yale Daily News.

Re: Orphaned by AIDS

To the editor:

I commend Andrew Klaber for publicizing the plight of children orphaned by AIDS in developing countries and agree that the United States ought to provide more financial support to help these vulnerable children. Furthermore, the photos in the article were touching and illuminated human struggle. AIDS and its devastating aftermath for families is of vital concern in Africa, Latin America, and Asia, and the United States has a responsibility as a global citizen to address this problem. Yet even as President Bush expressed a commitment to spend $10 billion in new money on AIDS drugs, patient care, and orphan care, he is hurting the very children he claims to help.

Over 1125 children under age 5 die every hour in developing countries from easily preventable or treatable diseases such as pneumonia, malaria, tuberculosis, and polio. The treatments and vaccines to combat these illnesses are effective and inexpensive. Yet, President Bush recently proposed a cut of $62 million funding for child survival programs through the U.S. Agency on International Development. A vaccine package covering the 6 main childhood killers costs only $30 per child, including infrastructure and administration. This budget cut translates into a lost opportunity to save the lives of over two million children. President Bush's support for AIDS orphans is admirable, but it will do no good if children do not survive long enough to benefit from it.

-Jennifer Rost, TD '06

Strange Bedfellows

For thoughts on the ICC, check out page 56.

To the editor:

Andrew Klaber's article "Orphaned by AIDS" does an excellent job of drawing attention to the dimensions of the crisis resulting from this deadly virus in Africa. The pictures in particular are extremely compelling and heart-wrenching, putting a personal spin on what can only be described as a tragic epidemic.

It was heartening to hear President Bush commit to combating AIDS in Africa during his State of the Union Address; however, I feel that it is unconscionable to try to combat the disease itself while ignoring vital contraception methods that could do much to prevent its spread.

Mr. Bush's incomprehensible stand against any form of contraception will only cause more harm in a continent already ravaged by disease and poverty. His commitment toward providing medical aid to those afflicted by HIV rings hollow without an equally strong stance directed toward preventing its spread.

Klaber is on the right track, but his solutions to combat the AIDS problem are not realizable in the near future. The first step should be to send antibiotics to the region. Preventing infection is a noble idea, but importing modern medical care to the region is all that we can hope for.

-Anthony Powell, BK '05

The Politic welcomes letters to the editors, article submissions, and any and all comments. All articles must be written exclusively for *The Politic*. Please send all correspondence to editor@thepolitic.org or:

The Politic
PO Box 201452
New Haven, CT 06520

Quotables...

"America is an imperfect melting pot, but we do aspire to be a melting pot. Europe does not aspire to be a melting pot."

- Tom Freidman, condemning European intolerance of immigrants, particularly those from the Arab world.

"A land without rights."

- Harold Koh, in reference to Camp X-Ray (Guantanamo Bay, Cuba.)

"Iraq's oil has been a curse on our people."

- Qubad Talabani, U.S. representative for the Patriotic Union of Kurdistan.

"Abortion is always going to be necessary because people are always going to make mistakes."

- Susan Yolen, Vice President, Planned Parenthood of Connecticut.

"You could easily have a nuclear arms race [in East Asia] if the U.S. seems weak."

- William Kristol, Editor, *The Weekly Standard.*

On CAMPUS

An Elm City Legend

New Haven has never been considered a small town, but it takes a bold and charismatic man to make the cover of *Time* magazine as mayor of the Elm City. **Richard C. Lee**, who died February 2 at the age of 86, not only gained national recognition for his sixteen-year reign as mayor, Democratic machine boss, and power broker, but he also was the man most responsible for the way the city looks today. While his urban renewal plans may not have succeeded in rejuvenating New Haven, Lee was widely recognized as a visionary for his efforts to improve the life of a city's inhabitants by improving their surroundings. Yet the man who built downtown New Haven had no pretenses about his accomplishments. As he told *Time*: "If New Haven is a model city, then God help urban America."

Joining the Affirmative Action Debate

On January 22, Yale General Counsel **Dorothy Robinson** announced that Yale would file a brief with the Supreme Court supporting the University of Michigan's affirmative action policy. Yale's announcement came one week after the administration of **President George W. Bush '68** filed a brief condemning Michigan's affirmative action policies as unconstitutional. In their decision to file a brief, Yale will join the company of Harvard, Stanford, and other universities who have offered to support the University of Michigan's claim that diversity in higher education is a compelling state interest.

Missing Their Own Party

On February 4, students awoke to an email from **William Tanzman '04** writing on behalf of The Student Committee for Corporation Reform. Dissatisfied with Yale's highest governing body, the committee wrote to "invite the trustees of the **Yale Corporation** and the students of Yale College to have an open meeting" on February 7 on Beinecke Plaza. Unsurprisingly, the Yale Corporation failed to show.

Another Voice in the Debate

"Democratic countries, including the United States and its allies, have the right to vigorously oppose those despotic regimes and terrorist organizations that threaten international security." So stated the newly formed **Yale Students for Democracy** in a recent advertisement placed in the **Yale Daily News.** Founded in response to those in the "Yale community [who] have decried America's efforts with dogmatic assertions of imperialism and hypocrisy," the group criticizes such rhetoric as "crass hyperbole." Their inaugural event was held on February 13 with former CIA director **James Woolsey.**

The Politic in The News

Former *Politic* contributors **John Kerry '66** ("Protection versus Production," Spring 2001) and **Joe Lieberman '64** ("Wiring the Nation," Fall 2002) joined the company of interviewee **Howard Dean '71** (Saving the Democratic Party," Winter 2002) in announcing their candidacies for the 2004 Democratic presidential nomination. In other news, former Politic contributor **Bill Frist** ("AIDS: The Challenge of the 21st Century," Spring, 2002) became Senate majority leader in light of the **Trent Lott** debacle.

Compiled by David White, Jacob Leibenluft and Sam Asher.

the Politic.org

spotlight on:

Jacob S. Hacker

Peter Strauss Family Assistant Professor of Political Science

Education:
Harvard University, B.A. 1994
Yale University, Ph.D. 2000
Hometown: Eugene, Oregon
Expertise: Politics of U.S. Health and Social Policy

In his State of the Union address, President Bush announced his plan to reform Medicare. What do you think of his proposal?

We don't know exactly what Bush's proposal is, since his budget conspicuously fails to spell out the details. But in his speech he hinted obliquely that prescription drug coverage would only be available to seniors in Medicare who enrolled in private health plans, like HMOs. That's a terrible idea and a political minefield that could blow up on Bush badly. It's obviously an attempt to bribe the 85 percent or so of Medicare beneficiaries who aren't in private plans into entering the private sector. But there's no basis for believing that private plans do a better job delivering benefits or are more popular. If and when people read the fine print, they'll be outraged.

Not long ago, you formulated a plan for universal health care. Could you please summarize how you propose to extend health insurance to all Americans?

My plan builds on Medicare to cover all Americans. It has three simple parts: first, a new public insurance plan, "Medicare Plus," into which all nonelderly Americans who don't get insurance from their employer would enroll; second, a requirement that employers provide coverage at least as generous as Medicare Plus's or pay a very modest contribution (no more than 5 percent of payroll) to enroll their workers in Medicare Plus; and, third, a requirement that everyone show proof of public or private coverage when filing taxes. The plan would eventually replace Medicaid, enrolling all under-65 citizens without workplace insurance in a single federal program. No employer would have to pay more than a very minimal amount for coverage, much less than those offering insurance pay now. And Medicare is tremendously popular. It's not viewed as a distant government bureaucracy. Even people who aren't over 65 see that it protects friends, neighbors, and parents — and ultimately will protect them. Estimates done by an independent organization suggest that virtually all Americans would be covered at a new federal cost that is less than what is now spent on tax breaks for private health benefits. Of course, the idea is a political nonstarter at the moment. But if health care costs continues to strain employers' bottom lines, crush state budgets, and foster public fears — and if Democrats recapture the White House — I think it's not implausible that initial steps toward this broader goal could be achieved.

How would you evaluate the near future of American social policy?

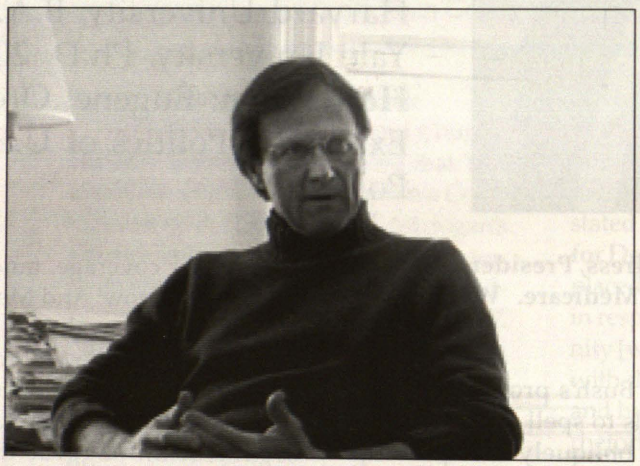
I see us entering a new mean season in which debates over social policy become much more acrimonious and high-stakes. In many ways, as I write in my book, *The Divided Welfare State*, Bush is taking us back to the future — back to the era of big deficits and constraints on social programs and, indeed, back to the original epochal debates over the respective roles of government and the private sector in the provision of social benefits. I can't think of a more exciting time to be a student of U.S. social policy, or a more crucial moment of debate and decision in the recent history of the American welfare state.

Who do you root for at The Game?

I plead the Fifth.

Environmental Responsibility

A Conversation with Professor John Wargo



Dr. John Wargo is Professor of Environmental Risk Analysis and Policy, Professor of Political Science, and Director of the Environment and Health Initiative at Yale University. His research explores spatial, temporal, and demographic distribution of environmental health risks, providing a basis for evaluating past environmental and natural resource management policies, and for suggesting legal reform. His most recent work has focused on children's exposure to air pollution, especially diesel emissions. Passionate about the environment, Professor Wargo sat down with The Politic on February 12 to discuss the most pertinent environmental issues of today.

The Politic: What is your current role regarding Vieques?

Professor Wargo: Vieques, an island east of Puerto Rico, has experienced enormous contamination from naval weapons testing and training over the past 60 years. I've worked on legal and scientific issues surrounding children's exposure to toxic substances for the past several decades, and Vieques is one of the most hazardous situations I've examined. Destroyers and other naval vessels have shelled the island consistently for decades. Several hundred million pounds of bombs and other munitions have accumulated in a tropical paradise. Navy pilots have flown bombing missions to test their skill and accuracy in hitting tanks and other dummy targets. A destroyer used to test the Navy's resilience to nuclear attacks by submarines in the Pacific Marshall Islands was towed to Vieques and sunk only several hundred yards offshore.

My research examines how toxic chemicals from the explosive materials have entered the Vieques terrestrial and marine environments and have led to hazardous exposures among island inhabitants. The poorest people on the island tend to grow their own food, and seafood is a dominant source of inexpensive protein. However, some fish are known to concentrate metals such as mercury and other organic compounds that place the islanders at heightened health risk.

Given that the Navy is expected to leave Vieques this spring, what steps would you like to see the government take regarding clean-up efforts?

I think that the Navy should clean up the extraordinary mess they have made. They are not anxious to test the soil, water, plants, fish and residents to determine the extent of contamination, as this will generate political pressure to decontaminate the island. Current estimates to remove chemical pollution from the island range from $4 billion to $45 billion. Since Vieques is home to nearly 10,000 Puerto Rican residents, who live at the island's center, there is little doubt that they have been exposed to a diverse mixture of toxic chemicals. The only morally defensible response by the Navy is to restore the island to its original condition. The US should also institute a health surveillance program for residents to monitor trends in disease, especially illnesses associated with known island contaminants. If the Vieques residents are found to have an incidence of disease higher than others who live in uncontaminated environments, compensatory damages may be appropriate.

Tell us out about the U.S. effort to deal with nuclear waste and how wide of a problem contamination poses for the rest of the world.

Nuclear waste will be around for thousands of years, posing one of the most difficult and hazardous environmental management problems. The question you've asked is broad, because there are nuclear weapons, spent fuel at nuclear power plants, and residues from plutonium en-

richment facilities such as the Hanford, Washington processing plant. One of the more significant national security problems now is how best to protect nuclear plants storing high-level waste on site. Our nation has never solved the radioactive waste problem when it comes to either nuclear weapons production or nuclear power generation. The new nuclear waste storage facility at Yucca Mountain is an attempt to manage the threat; however, is has structural problems, and wastes must be shipped from around the nation, with obvious vulnerability to terrorist acts.

Considering that so much of our produce is imported from around the world, is government regulation of national pesticide use an adequate step to ensure a safe food supply?

No. Our food supply is increasingly international. Just think about your breakfast - coffee, bananas, orange juice, cornflakes - the probability is high that many of the foods that you eat on a daily basis come from abroad. The chemicals used in food production in other nations have the potential to make their way into our food chain, our supermarkets, and our bodies. My own opinion is that the U.S. and other countries with high toxicological expertise should play a role in establishing health protective standards to insure that imported commodities and processed foods do not pose any significant risks.

The other side of this issue is that more toxic chemicals are used commonly in poorer nations, raising the threat of environmental contamination and farm worker poisonings. The U.S. could influence policies abroad by setting health protective standards for residues on imported foods, and establishing an effective surveillance program at our borders. The problem is that health protective standards interfere with international trade. The current U.S. position is to set the allowable contamination limits high, limit surveillance, and the problem will not be recognized. To those who oppose strict environmental and health standards for international trade, the absence of evidence of risk is interpreted as evidence of absence of risk.

Is such a comprehensive international agreement realistic in the foreseeable future?

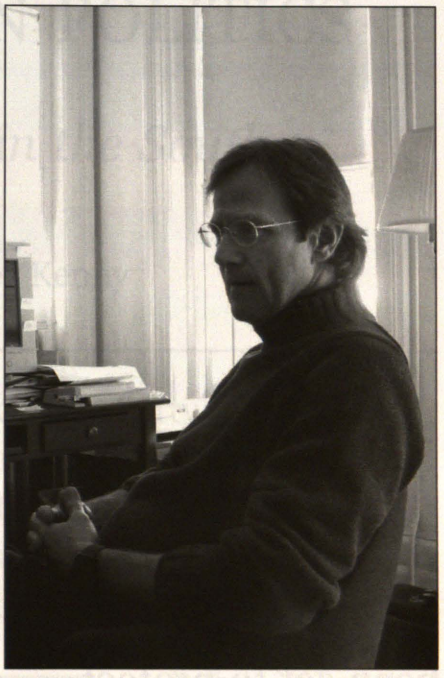
Well it might happen in different legal instruments. There have been agreements for standards on specific chemicals and specific foods. The problem has been that standards have been set at levels high enough to ensure trade would not be interrupted. Food safety standards have not been set to protect health, but rather to ensure free trade across national borders. My preference? No one wants their children to become ill, so set standards that ensure health protection.

Tell us about the pesticide-labeling legislation that you are proposing in Connecticut.

Rights to knowledge of hazards in the marketplace should be considered public property, really a form of intellectual property. Labeling has long been the dominant U.S. strategy to manage risks to products such as pesticides, over the counter pharmaceuticals, and many other consumer products. Yet chemical hazards pose a special challenge since they often escape human senses, creating a special logic for product warnings. But when is the evidence of hazard sufficient to justify public warning? This is the most difficult question.

More and more Americans eat organic foods. What threat does this pose and what has the government done to regulate this?

I don't think organic foods pose a greater threat than non-organic foods. I would like to see a legal system in place to encourage a form of agriculture that uses fewer synthetic chemicals. Unfortunately, our system of agriculture in the U.S. has evolve. Now that we have fewer farmers, with bigger farms, planting fewer crops, with large acreages of monocultures. Farmers are expert in one type of farming. This fact leads to pest problems which can



The U.S. should play a role in establishing health protective standards to insure that imported commodities and processed foods do not pose any significant risks.

wipe through thousands of acres in a short time, creating a high demand for chemical application. It is basically a risk management strategy. In the 19th century, there was a much higher level of crop diversity that protects against that. Diversification means minimizing risk. I think that organic agriculture leads to fewer externalities in terms of environmental contamination and fewer health problems for farm workers.

What do you think of the Bush administration's newly-stated policy for reducing dependence on foreign oil and cutting emmisions of greenhouse gases?

The U.S. should play a global leadership role to reduce emissions, yet the Bush administration has chosen to neglect the problem and instead has proposed possible funding of technologies that are unlikely to reduce emissions for decades. It is a risky investment policy. We have remarkable opportunities to reduce emissions today given existing technologies, and thereby reduce ecological and health damages from climate change. I do not subscribe to the view that climate change, especially warming in temperate climates, is socially beneficial. We're playing with fire, literally. One of the more obvious ways to reduce emissions and risk is by increasing vehicle fuel efficiency. The U.S. fleet now averages about 24 miles per gallon, yet we have the current capacity to triple that efficiency with current technologies. I am a fan of investing in new technologies, and fuel cells offer a real potential for dramatic reduction in emissions. But they are a long-term and high risk investment. Our nation should pursue both long-term and short-term options that reduce industrial and individual emissions. And my own view is that we should also take the moral high road in becoming a global leader to demonstrate how current technologies could reduce emissions.

Developing countries find it difficult to balance the goal of economic growth with environmental protection. Can you comment on this problem, and on how the US can play a leadership role in its solution?

There are many strategies to achieve economic growth without damaging the environment or human health. We have learned many lessons from poorer and wealthier nations. Indigenous methods of agriculture teach us the value of crop diversity, while high income nations continue to plant larger acreages with fewer crops. Urban sprawl leads to the clogging of roadways between rural and urban centers, creating serious air pollution problems. Effective control of urban development together with transportation planning could avoid significant ecological and health damage. We also know far more about the relations between irrigated agriculture, tropical deforestation and vector borne diseases like malaria that should guide future development.

What do you see as the greatest environmental danger to the world today?

I think the greatest danger is illiteracy about ecology and environmental science. People in one nation, state, town or neighborhood, do not think about how their behavior can influence their neighbor's environmental quality or health. Nor do we commonly consider our legacy for future generations to clean up. It is important to think historically so that future generations do not make the same mistakes our parents made. I have great faith in our collective instinct of survival. No one wishes to damage the environment or the health of others. But we all could learn far more about what types and intensities of human behavior are harmful to health or environmental quality. And this understanding is probably necessary before people will voluntarily change their behavior. ♦

Food safety standards have not been set to protect health, but rather to ensure free trade across national borders.

RETHINKING SOUTHERN POLITICS

• • •

How the Democrats Can Regain the South

by Daniel Bernstein and Christopher Kenny

The Southern United States, which the Democratic Party owned for over a hundred years following the Civil War, seems to have finally switched to the Republicans. A glance at the 2000 electoral map shows a sea of Republican red for George W. Bush in the South, and the 2002 map shows GOP gains from US Senate seats down to state legislatures.

Merle and Earl Black's *Rise of the Southern Republicans*, a recent political science bestseller, examines this shift that has occurred since the 1960s. What began with Barry Goldwater's 1964 presidential campaign opposing civil rights legislation, and continued with the electoral success of Richard Nixon and Ronald Reagan, has transformed the South into one of the Republican Party's strongest bastions.

Despite this trend, Democrats are not dead in the water. Recent scholarship and electoral results do point to promising signs for the party that once dominated the region. In *The Emerging Democratic Majority*, John B. Judis and Ruy Teixeira argue that demographic changes, with an influx of minorities, and economic developments, with the advent of a post-industrial workforce, will improve the party's electoral prospects. These factors alone, however, cannot ensure a Democratic majority: Montgomery will not become San Francisco anytime soon. Democrats must secure their traditional party base and use a centrist economic message to attract moderate white voters. An overly populist party platform may play well among lower-income voters but will not fuel a Democratic resurgence in the South.

In their 2002 southern strategy, the Republicans capitalized on the frustrations of white males. Traditional cultural issues, such as Confederate heritage and guns, coupled with concern for national security, brought impressive numbers of conservatives to the polls for the GOP. The Democrats, on the other hand, in failed many states to attract swing voters and bring crucial African-American supporters to the polls. A careful look at the U.S. Senate races in Georgia and Louisiana reveals what works and what does not for the Democrats.

In Georgia incumbent Max Cleland (D), who held a steady lead in the polls throughout the summer, unexpectedly lost his U.S. Senate seat to lesser-known Representative Saxby Chambliss (R). Even more surprising than the outcome of the election was the issue on which most pundits agree that the contest was decided. A triple-amputee veteran of the Vietnam War and former Veterans' Affairs administrator under President Carter, Cleland entered the race as the more trusted candidate on foreign policy and defense issues. As the debate on national security intensified, Chambliss took the offensive, accusing Cleland of being soft on homeland security legislation.

Daniel Bernstein is a sophomore in Pierson College at Yale University. He is the National Editor of *The Politic*. Christopher Kenny is a sophomore History major at Northwestern University.

President Bush campaigns with Saxby Chambliss in Georgia. Chambliss defeated incumbent United States Senator Max Cleland in a highly contested election in 2002.

Democrats must secure their traditional party base and attract moderate white voters with a centrist economic message.

Chambliss alleged that the Vietnam veteran was more concerned with workers' rights than with protecting the nation. In October, Chambliss received a critical endorsement from the Georgia chapter of Veterans of Foreign Wars. Moreover, he was the beneficiary of visits from cabinet members, the first lady, and the president himself. On the campaign trail, President Bush asserted that regardless of Cleland's qualifications, Chambliss falls more in line with the country's long-term goals for national security. The popular president's trust in the challenger motivated Georgia voters to oust a seasoned incumbent. Saxby Chambliss won by seven points on Election Day.

State races, however, are not determined solely on national issues. Across Georgia, Democrats were hurt by Governor Roy Barnes' revision of the state flag, which reduced the Confederate stars and bars to a tiny emblem. Southern heritage remains an emotionally-charged, contentious issue in Georgia, and the Democratic governor's position on the issue led to a massive assault from his conservative opponents, who came to the polls in large numbers. Many frustrated white males, worried about an erosion of Georgia's southern history, voted a straight Republican ticket. Although the state flag was not a major issue in the senate race, Cleland no doubt suffered from this widespread backlash against Democrats. Indeed, Georgia Democrats also lost both houses of the state legislature, two Democratic-leaning open U.S. House seats, and a governor's mansion they have controlled since Reconstruction.

The outcome of the heated and protracted battle for Louisiana's Senate stands in sharp contrast to what happened in Georgia. According to Louisiana state election law, a candidate must receive a majority, not a plurality, in the first round of an election to be declared a winner. Determined to send a Republican from the Bayou to Washington for the first time in over 130 years, the GOP shrewdly ran four candidates known individually in different regions of the state against Democratic incumbent Mary Landrieu. Although Landrieu beat all her opponents by over 20 points, she had to face the Republican frontrunner, state elections commissioner Suzanne Terrell, in a December run-off. This election showed that the Democrats are still able to survive in the Deep South.

Landrieu's initial strategy was to align herself as closely as possible with the popular president and simply back her way into a second term. She routinely touted her 70 percent voting record with Republicans. While Landrieu did this in an attempt to both deflect charges of being a Washington liberal and bring centrist voters over to her camp, her strategy backfired. If voters want to elect a candidate in lock-step with President Bush, they will choose someone from Bush's party. Indeed, the four Republicans on the ballot collectively took 52 percent of the November vote. Gearing up for the run-off, Landrieu decided to recalibrate her message as she watched unfavorable results come in across the country on Election Day. Witnessing other candidates who ran as Bush-friendly Democrats lose their bids in Georgia, Texas, and Missouri, she decided to distinguish herself

from her rival as a candidate not beholden to any one party but rather true to the independent spirit of Louisiana.

Specifically, Landrieu supported the president on homeland security and abolishing the estate tax, but she was not afraid to challenge him on local issues. She championed the cause of Louisiana sugar producers hurt by some of the administration's trade policies. While in November Landrieu constantly reminded voters of her consistency with the president, in December she ran attack advertisements decrying Terrell as a rubber-stamp to the Bush administration. Unlike in Georgia, this election did not boil down to an overriding issue; it highlighted the different themes of the two campaigns.

In December Landrieu also benefited from the high-turnout of traditional Democratic supporters. She won urban areas with large black populations and pro-labor parishes. In New Orleans, where 63 percent of voting-age blacks are registered, Landrieu commanded a four-to-one victory over Terrell. Many African-American leaders were at first lukewarm to Landrieu's candidacy because of her pro-Bush rhetoric, but they rallied behind her in December, hoping to halt the Republican juggernaut. Her new, revised strategy earned her a second term as Louisiana senator.

So what can the Democrats learn from Georgia and Louisiana? While national issues must be directly addressed in Washington races, local issues and passions cannot be overlooked. Because of the political climate in 2002, candidates for the U.S. Senate had to take positions on national security vis-à-vis the president's agenda. Although the debates surrounding the Department of Homeland Security may not be key issues, national security undoubtedly will shape political discourse in our post-9/11 society more than it has since the height of the Cold War. The Democrats must therefore allay voters' fears about America's vulnerability and stand strong on national defense, even at the risk of sounding in unison with the Republican leadership. On such issues of grave importance Americans typically prefer non-partisan solutions and a united front. Although Max Cleland voted for creation of the Department of Homeland Security, he was left holding the bag for the national Democrats' shortsighted insistence on stalling the bill in order to protect worker safeguards.

In Louisiana, Mary Landrieu stood strong with the president on national security, but to her fault at first tried to maintain solidarity with him on a litany of other issues. Essentially, if voters have a choice between a Republican and a quasi-Republican, they will go for the real thing and choose the former. Landrieu could not win as a Democrat running on all Republican issues. Only when she began to define herself as independent, and tag her opponent as the puppet of the Washington Republicans, did her campaign receive its life-saving injection. The local issues became decisive.

As political discussion turns to economics in the South, Democrats discover their winning issue. Republicans may be considered stronger on national defense, but not necessarily on the economy. Nationally, Democrats have to run on the economy; they cannot be caught squabbling over the minutiae of, say, homeland security legislation, and in the process fail to offer an attractive alternative to the Republicans.

The Democrats must nevertheless be careful how they build their economic platform. As we saw in the 2000 presidential election, Al Gore's "People versus the Powerful" theme may have played well with the party's lowest in-

An overly populist party platform may play well among lower-income voters but will not fuel a Democratic resurgence in the South.

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come bracket, but it effectively alienated many middle-class swing voters to whom he was generally trying to appeal. What worked for Harry Truman in 1948 will not work for a Democratic candidate in 2004 and beyond.

The Democrats can start winning back the South by trumpeting a message of economic opportunity for all, instead of class struggle. The Clinton model of cutting deficits and embracing specific, popular tax cuts still works in the South today. In Landrieu's case, supporting the tariff on sugar imports and eliminating the estate tax improved her image with Louisiana voters. Democrats across the South can appeal to voters by taking strong, yet moderate, stances on local economic issues. As Clinton said himself, "It's the Economy Stupid."

The same economic policy that can attract centrist voters can also hold the Democratic Party's traditional lower-class base. Economic Empowerment Zones, for instance, are an underused tool for Democrats to vitalize poor African-American communities and avoid the lethal charge of being tax-and-spend liberals. The South does not tolerate many of the liberal economic policies that are palatable to the North. Empowerment Zones, which have been established in Atlanta and the Mississippi Delta, as well as the more famous example in Harlem, offer tax incentives to residents and businesses, and allow local authorities to lead their communities' renewal projects. The Democrats can beat the Republicans at their own game by promoting popular tax breaks and local control.

In the South, African-Americans identify with the Democrats on most cultural issues, but their support cannot be taken for granted. In any given election, African-Americans typically cast around 22 percent of total votes. Of that 22 percent, serious Democratic candidates usually take 90 percent. For Democratic candidates to be successful, however, they must spur black turnout closer to 25 percent of the total votes cast and take close to 37 percent of the white vote. These numbers clearly vary from state to state and no formula is full proof, but David Rudd, former Chief of Staff to Senator Ernest Hollings of South Carolina, asserts that this model is generally true

Rudd, who is credited with engineering Hollings' successful 1998 re-election campaign, believes there are more effective ways for Democrats to bring African-Americans to the polls without alienating white voters: "Appeals to black voters can generally be made under the radar with direct mail, ads on black radio stations, and automated phone calls. Also, we spent much more on renting vans to shuttle voters to and from the polls." Television advertising, though effective in reaching white voters, does not have the same effect with African-Americans; a more personal, grassroots strategy is the best course. Especially now that the GOP has made huge strides in its "Get Out The Vote" effort (see Georgia and South Carolina as well) Democrats must continue to cultivate their strongest base of support.

After securing the necessary turnout of black voters, Democrats have to neutralize certain cultural issues in order to prevent the turnout of frustrated whites from throwing off the formula. "Some issues—the death penalty, abortion, gun control—are disqualifying," says Rudd. There is no formula for Democrats to strike a balance between being conservative enough to win and liberal enough to remain a legitimate alternative to the southern Republicans. "Essentially, you have to inoculate yourself against the culture wars early on and then change the subject," he says in reference to local economic issues. This task is certainly difficult, but it can be achieved by a clearly defined message.

Despite recent electoral defeats, Democrats have not lost the South. The bases of the two parties are finally appropriately aligned after a hundred years of unnatural alliances. In a region where statewide Democratic victories will always be close, the battle remains over the center of the electorate. By taking firm positions on economic issues and securing the support of its traditional base, Democrats can reemerge as a competitive and powerful political force. A centrist presidential candidate in 2004 would not be a bad start.♦

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THE CALVARY VERSUS GRANT

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The "New" U.S. Army in Afghanistan and Iraq

by Mary Habeck

As the United States deploys troops in the Middle East and prepares for war, the army is in the midst of a controversy over mission, organization and doctrine that may utterly transform how it fights wars. The debate is between one group of officers and civilians who argue that changes in military affairs demand a complete rethinking of every aspect of the army, and other more cautious officers who want evolution, not revolution. Which vision wins this debate will determine not only how the war on terror is fought, but how the army will be shaped for decades to come. What is striking about the debate is how closely it resembles others held over the last 150 years. Officers who favor heavy, hard-hitting warfare have always opposed reformers who advocate light, mobile combat. There is, in fact, nothing truly new about the current controversy; only the details of tactics and technology have changed.

The present debate heated up in 1991. Until then, it seemed clear who the main enemy of the United States was and how the army would go about defeating the enemy in any possible conflict. The USSR was obviously the greatest threat to world peace, and only a massive battle of attrition, using overwhelming fire and materiel, could prevent the Soviets from seizing Germany and the rest of Western Europe. The accepted and official doctrine of the U.S. military as a whole was known as "air-land battle." This idea was a modernized version of blitzkrieg that took advantage of America's great strengths: high technology, massed firepower from air and land, and detailed logistical planning that would allow the U.S. to project power across the Atlantic. The army's part in this battle was to provide the heavy armored fist that would bear the brunt of the fighting on the ground.

Oddly enough, the first true test of air-land battle came not on the plains of Germany, but on the Arabian Peninsula. The Gulf War seemed to prove that America's military doctrine had been right. Even in a completely different setting, the U.S. managed to transport half a million men and women—with all their necessary arms and equipment—thousands of miles in just a few short months. The battle that followed used the accepted doctrine with its reliance on attrition, materiel and firepower to defeat Iraq and liberate Kuwait. For years afterward, the Pentagon replayed the Gulf conflict, seeing it as the model for possible conflicts on the Korean peninsula, the Middle East and elsewhere.

There were, however, some within the army and the marines who argued that the vision of warfare on which air-land battle (and the Gulf War) was based was not the future of conflict, but rather the past. The Soviet Union fell apart in 1991 and it seemed unlikely that there would ever again be a need for the heavy infantry and armor units that formed the core of the forces needed to carry out the doctrine. Instead civilians like Franklin Spinney, a weapons analyst, joined with a group of army and marine officers to suggest that ground forces should be lighter, more mobile and thus more suited for the conflicts the U.S. might face in a post-Cold War world. Spinney was not the first to suggest this. Even before the Cold War ended, John Boyd, an officer in the air force, had argued for just such a transformation, and in 1989, William Lind, two army colonels and two marine officers had written an article for the Marine Corps Gazette describing the appear-

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ance of "fourth generation warfare". In contrast to earlier generations of fighting, the new style of combat would depend on decentralization, small independent units and maneuver to attack the enemy. The object of such a war would not be territory or even the adversary's army. Instead, it would be the enemy's will to resist. They also suggested that it was not states such as Iraq or Korea that posed the greatest danger to the U.S., but rather stateless groups that could not be easily engaged with standard army tactics. The U.S., they argued, had to change its tactics, weaponry and methods of deployment to react quickly to threats and to be able to maneuver with agility on a battlefield that would no longer have a recognizable front and rear.

The army already had a category in which to place the new idea of fourth generation combat: asymmetric warfare. In the past, most conflicts have been between adversaries who share similar ideas on strategies and tactics or who have similar numbers of men and types of material. Asymmetric warfare is any sort of fighting—guerilla wars, insurgencies or terrorist attacks—in which there is a mismatch between any of these levels of combat. For many army officers fourth generation warfare, with its irregular tactics, small units and decentralization, seemed to fit into this category. And, after all, the example of the new sort of warfare that Lind et al. chose to dwell on was terrorism. The general response of most officers at the Pentagon was to admit that the new concept might be useful for understanding a minority of potential conflicts, but that the bulk of the army's money and time should be spent on preparing for the next major war—essentially a rematch of the Gulf War. The one exception was the Marine Corps, whose commandants have always understood that their arm had to have fast-moving, easily deployable small units. Otherwise, asymmetric threats would be met by the Special Forces, which were divided amongst the various branches of the military and commanded no budgetary respect.

Reformist minded officers and civilians like Spinney did not give up on the new concept. Throughout the nine-

Officers who favor heavy, hard-hitting warfare have always opposed reformers who advocate light, mobile combat.

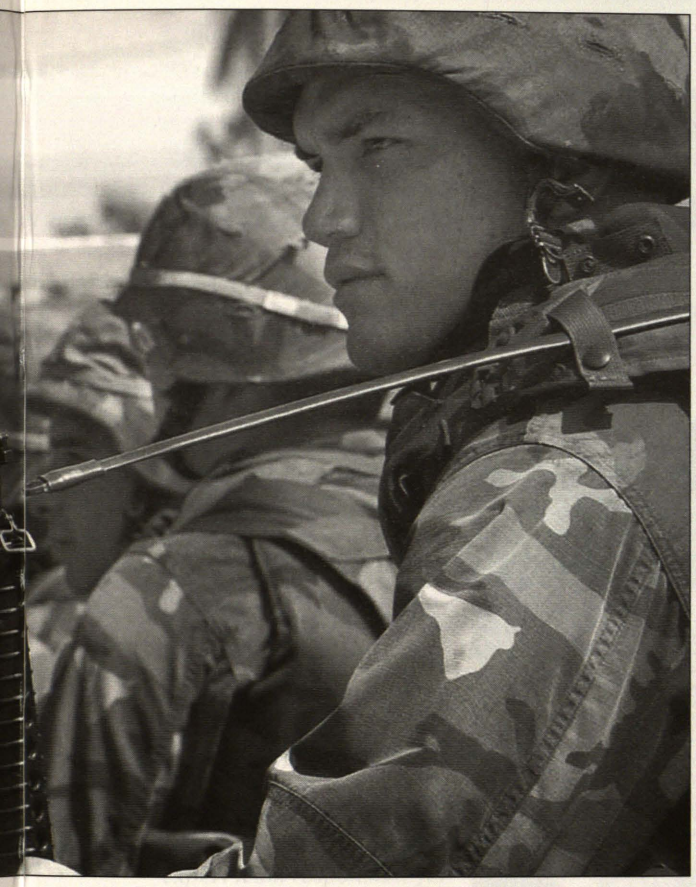
Although present-day reformers may feel that they are arguing for a doctrine and army that is completely new, fourth generation warfare is actually a type of combat with which, historically, the U.S. military is very familiar.

ties they developed the fourth generation idea to show that it included much more than terrorism, and that the enemies that the U.S. was likely to face would adapt and use this type of warfare to attack America and its interests abroad. They argued that the army had to spend more of its budget and energy on the equipment and training necessary to fight the next war, and not the last. In particular they pushed for lighter tanks and more flexible tactics that would allow small units to act independently from centralized command and control.

The attacks of September 11 breathed new life into the reformers' arguments. As they had predicted, the threat to the U.S. came not from an organized state or a regular army trying to take territory, but rather from a stateless organization that was trying to cause the U.S. to collapse from within. In their original article, Lind and his fellow writers had in fact presciently argued that the most likely source of danger for the U.S. was Islamic terrorists. In a fortunate confluence of circumstances, the recently named army chief of staff, Eric Shinseki, supported maneuver-warfare and units that would be more quickly deployed while Donald Rumsfeld would also show himself to be in favor of new thinking about warfare.

The results were obvious. Combat in Afghanistan generally followed along the lines favored by fourth generation proponents, relying not on attrition and heavy armor, but rather on small Special Forces units on the ground coordinating fire-power and quick-moving units. Even the use of allies to carry out the majority of the actual fighting fit with the flexibility urged by the reformers. Not long ago, the Special Forces were granted their own independent command, which will give them for the first time not only a unified structure, but the bureaucratic respect necessary to play a more significant role in any conflict. The army also decided to proceed with the development of units based on the new Stryker armored vehicle. The Stryker is a wheeled combat vehicle and is therefore lighter and faster than the main battle tanks currently used by the army. Forces equipped with Strykers can be transported more quickly than heavy armor units, allowing the army to send a combat brigade anywhere in the world within 96 hours. Significantly, the marines already have a wheeled combat vehicle that they used to good effect on Afghanistan's rough terrain. Finally, the greatly reduced forces that will fight in Iraq show that the army is not planning on refighting the last Gulf War, but is now committed to a war of greater maneuver and less attrition, if not the small unit combat favored by the reformers.

The debate over fourth generation warfare thus seems to have ended with at least the partial success of the reformers. But there is a cautionary tale that history can tell us about debates such as these. It could in fact be argued that this is but the latest installment in a controversy that began with the Civil War. Grant's assault on Richmond



in 1864-5, and to a lesser extent Sherman's march to the sea, relied on attrition, firepower and a massive army to wear down the enemy and then push through Confederate lines. The army came away from this experience convinced that it had found the key to winning not just that war, but any future conflicts as well. Unfortunately, its very next war was not with one of the great military powers of the Western world, but rather with irregular groups of Native Americans. From 1866-90, the army had to relearn how to fight a quick-moving, highly mobile foe whose small units knew how to use terrain to their advantage. The result was the transformation of the army from the heavy, artillery-dependent, slow forces that defeated Lee into fast-moving, lightly armed cavalry units that could fight independently from centralized authority. This new "cavalry-style" army showed its worth when it successfully fought the Philippine Insurgency in the earlier years of the twentieth century.

The army staff, however, never forgot the lessons that it had learned in the Civil War, and officers preserved the idea of a "Grant-style" warfare that they were certain would dominate any future large-scale conflicts. Thus, when the First World War began, the army was prepared to fight the last great war, if not the war in which it found itself. Despite suffering losses from massed frontal assaults, success made it difficult to argue for reform once the European conflict ended. The Second World War only served to confirm the lessons of the Civil War. Once again, attrition warfare based on overwhelming amounts of firepower, men and materiel wore down both the Japanese and German armies and eventually led to their defeat. The entire Cold War was predicated on refighting the Second World War, but with greater firepower and technology. The development of air-land battle took into consideration the need for more maneuverability on the battlefield, but did not adapt fully the decentralization and small-unit tactics that made up the complete blitzkrieg idea. As Andrew Krepinevich has pointed out, this explains why the army was unable to adapt its core beliefs to the conditions of the war in Vietnam: all its weaponry, tactics and command structures were based on a Grant-style war of attrition and not the irregular cavalry-style conflict in which it found itself. As soon as the Vietnam War ended, the army returned (with relief) to fighting its main enemy—the Soviet Union—and its favored style of combat—the Grant war of attrition.

This abbreviated history shows that the current debate fits into a long-running theme in the evolution of the American army. Although present-day reformers may feel that they are arguing for a doctrine and army that is completely new, fourth generation warfare is actually a type of combat with which, historically, the U.S. military is very familiar. The only thing they must do is remind the army of its past in order to prepare it for the future. ♦

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THE ISRAELI-PALESTINIAN DILEMMA

An Interview with Martin Indyk

The Clinton administration witnessed, and in many ways directed, a period of drastic changes in the Middle East. President Clinton himself made resolving the Israeli-Palestinian conflict one of the key goals of his foreign policy, and he devoted considerable time and personal energy to peacemaking. He also maintained an expert team responsible for devising a Middle East policy. Martin Indyk (with Yasser Arafat, right) was a key member of this team, serving as Ambassador to Israel from 1995 to 1997 and from 2000 to 2001, and as Assistant Secretary of State for Near East Affairs between the two stints as an ambassador. In early January, The Politic sat down with Indyk to hear his thoughts on the current situation in the Middle East.

The Politic: What are the biggest obstacles to a lasting resolution to the Israeli-Palestinian conflict?

Martin Indyk: Violence and terrorism. Back in 1993, when both Israelis and the Clinton administration embraced Yasser Arafat as a partner in a negotiated solution, he was embraced because he made a commitment not only to recognize Israel but also to eschew the use of violence and terrorism. It was a solemn written commitment not to resort to force, but instead to resolve Palestinian differences with the Israelis through negotiation alone, and that commitment was broken. There is a question as to whether it was ever kept, but it was certainly broken. This is one of the problems Palestinians have when arguing they have a legitimate right to use force to liberate occupied territory —the leadership made a commitment not to use force. Until there is responsible leadership on the Palestinian side that is willing to repeat that commitment and enforce it on the Palestinians, it is very difficult to see how any progress can be made in negotiating a solution.

Can two leaders as ideologically opposed as Arafat and Sharon ever reach a settlement?

I do not think that any agreement can be negotiated with Yasser Arafat, because I do not believe that there is any constituency in Israel that would support making an agreement with a man who is now seen as a serial breaker of agreements. Given that lack of credibility — leaving aside all the other problems in Arafat's leadership and his position on issues like the right of return for Palestinian refugees —I don't think it is possible to reach an agreement with Yasser Arafat. If through constitutional reform and elections he became a figurehead president for Palestinians without any real power, and if power were devolved to an elected prime minister and a cabinet, perhaps then you might get a shift in attitude on the Israeli side that might make such a deal possible.

As far as Sharon is concerned, there is a fundamental question as to who Sharon would turn out to be in circumstances where there was a viable Palestinian negotiating partner prepared not only to make commitments, but also to live up to them. There are, in a way, three Sharons doing battle for the mind of the prime minister. There is the general who wants to use force to resolve the problem and get rid of Arafat. There is the politician who is always straining to service his right-wing constituency through settlement activity and hard-line policies; this politician knows that he has to win support from the center and therefore give Israelis in the center some hope for negotiations with the Palestinians. Sharon's political concerns also explain why he constantly says that he is negotiating, even though his ostensible position is that he will not negotiate with

No agreement can be negotiated with Yasser Arafat, because I do not believe that there is any constituency in Israel that would support making an agreement with a man who is now seen as a serial breaker of agreements.

the Palestinians until the violence stops. And finally, there is Sharon the would-be statesman. This statesman was actually the first one to propose a Palestinian state on the Israeli side. He talks about painful concessions that are necessary. He conveyed to Yasser Arafat when he first became prime minister that Arafat was making a mistake by not stopping the violence and making a deal with Sharon. Sharon knew that he could deliver in a way that no other Israeli leader could given his right-wing credentials as a supporter of the settlements.

So I think in Sharon's case, the man is a pragmatist, not an ideologue. He doesn't have a commitment to Judean Samaria for ideological reasons; he has a commitment for what he would view as strategic reasons. He values the high ground – that is where he put the settlements. But he is not averse to evacuating the settlements, as we saw in the Sinai when he was defense minister. And from time to time, he has hinted that he is willing to evacuate some settlements in the course of a negotiated agreement, although he would not evacuate the settlements he put in the high ground. But I think it really remains to be tested how far Sharon would go.

Looking back almost two years, what did the Clinton administration accomplish in the Middle East?

The end result of a massive eight-year effort — which involved the wholehearted commitment of the President of the United States and his peace team — was a failure. We sought to achieve a comprehensive peace and we ended up with a war between Israelis and Palestinians.

Along the way, I think we achieved many things of lasting value. A peace agreement was established between Israel and Jordan, and that agreement is working effectively despite coming under heavy pressure. Negotiations between Israel and Syria resulted in the general framework of a deal. The only outstanding issue is the question of what happens with the 200 meters around the Northeastern sector of the Sea of Galilee. When the Palestinian deal is done it will be possible to complete that Israeli-Syrian deal and a settlement with Lebanon will also be within reach. Israel is out of Lebanon, and I would argue that the withdrawal has proved to be quite a success in terms of bringing a much calmer situation to Northern Israel.

But despite these accomplishments, the overall conclusion is that we failed to achieve our objectives. I think that the negotiations between Israelis and Palestinians produced, in the Clinton parameters, the deal that will be consummated once the Palestinians come to understand that they cannot achieve their aspirations through violence and terror. Nevertheless, in the meantime we're faced with a horrendous situation. The reasons for this situation are twofold. First, during the implementation of the Oslo agreements, I think both sides observed a commitment in the breach. Second, when the Bush administration took office, I think the policy of disengagement adopted by the Bush administration only made matters worse. I think we made some lasting achievements in the peace process. We broke a lot of ground in terms of negotiations

on both the Syrian front and the Palestinian front. But until it becomes clear again to the Palestinians that they cannot achieve their objectives through force, it will not be possible to achieve the comprehensive peace that eluded the Clinton administration.

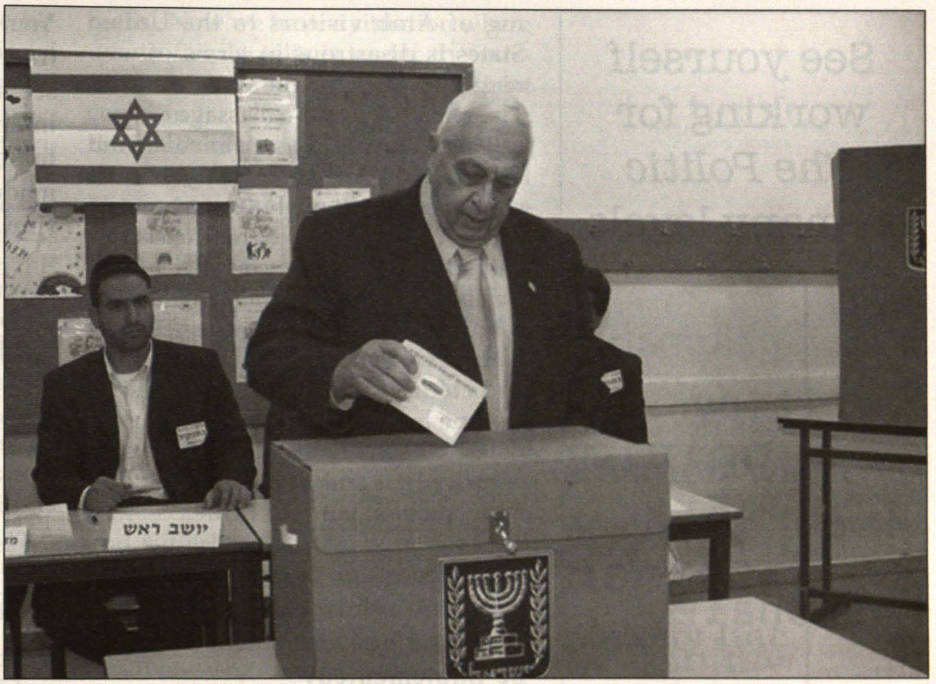
How would you assess the Bush administration's handling of the Israeli-Palestinian conflict, especially in the aftermath of the September 11 attacks?

There is no change in their strategy at all. They are fundamentally disengaged. [Bush] makes speeches that are full of vaunted rhetoric and fine visions of democratic Palestine alongside a secure Israel, but the reality is that he has no intention of following through on that rhetoric. The administration has not made a serious effort to back the vision with any effective policy.

A roadmap for peace lies in the hands of bureaucrats in the State Department, but we can see that it has no backing from even the Secretary of State, let alone the President. It is not a priority for them, and that will continue to be the case until the administration believes that the Israelis and Palestinians are putting an end to this war of attrition.

Basically, as long as the Israeli-Palestinian conflict doesn't boil over and create regional instability, the administration's view is that Israelis and Palestinians can be left to stew in their own juices. That's the basic predisposition of the administration, and it makes it possible for the President to simply say the right things and avoid any tensions with the Sharon government by getting involved.

Many analysts say the U.S. is losing the so-called "battle for hearts and minds" in the Arab world. How important is public diplomacy? What can the U.S. do to stem a tide of hatred from the Arab world?



I think that public diplomacy was a big failure post-September 11, and we need to face up to it. We declared a war on terrorism, not a war on Islam. But what we have is a war with Islam. Of course, we have a war on terrorism as well, but relations between the United States and the Islamic world have dramatically deteriorated. That was not our intentional purpose — it was indeed Osama bin Laden's purpose, and he succeeded in turning the war on terrorism into a clash of civilizations. Public diplomacy cannot do a lot about that. It can at best avoid making things worse.

For example, when administration staff briefs the press about the military occupation that they intend to establish in Baghdad after Saddam is overthrown, this attitude plays into the hands of those in the bin Laden camp who say that the United States is really just an imperialist power seeking to have its way in the region. There are a whole lot of ways in which our public statements have damaged our efforts to make it clear to the Islamic world that the terrorists, not Muslims, are our enemy. So I think the first rule of public diplomacy is "Do no harm," and we have been doing quite a bit of harm in so many different ways. Some things just can't be helped. For example, the fingerprint-

As long as the Israeli-Palestinian conflict doesn't boil over and create regional instability, the administration's view is that Israelis and Palestinians can be left to stew in their own juices.

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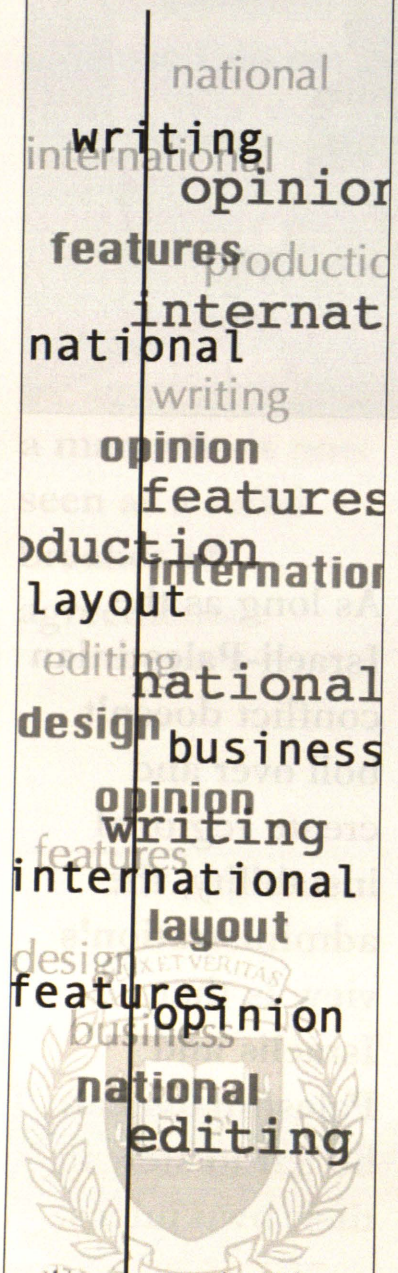

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ing of Arab visitors to the United States is disastrous in terms of winning the hearts and minds of Muslims. This policy sends the message that we regard everybody as criminals. And it cuts down significantly on the amount of people who want to come to the United States either to visit or to study. Therefore, such policies drastically reduce the number of people who are exposed to the virtues of American democracy, and our values and culture. But some of these things cannot be helped in circumstances where we have to take care of our own security first and foremost. They just make it much more difficult.

How important are political and economic reforms in the Middle East, and how can such reforms be implemented?

If we were serious about promoting democracy in Palestine, and if we succeed in toppling Saddam and promoting greater pluralism in Iraq, those changes would have a very important ripple effect on other parts of the region. In addition, we need to get behind the smaller states in the region who have reform-minded leaders. In Bahrain, in Qatar, in Morocco, in Jordan, and potentially in Tunisia and in Yemen, there are leaders who understand what has to be done on a political level. By working with them, we could have an impact on the larger states that are frozen at the moment: Egypt, Saudi Arabia, Syria, and Iraq.

The problems in Iraq may soon be solved. But Syria, Egypt and Saudi Arabia — the large regional powers in the Arab state system — have leaderships that are completely frozen and unable to respond to the needs of their people for political and economic reform. It is much more difficult to get these states to change, but I think that a periphery strategy can have an impact. In other words, if you attack the frozen states with regime change in Iraq, democratization of the Palestinian institutions, and support for active reformers on the periphery of the Arab world, you may over time begin to make an impact on the center.

You have recently called for an international trusteeship to oversee a Palestinian state in its infancy as new institutions are built and a final settlement is made. How would such a trusteeship work?

If you look at what the administration is now saying about the kind of post-Saddam regime it wants to establish in Iraq, it is very close to this trusteeship idea. In a trusteeship, you would have a civilian administrator, who works with a civil service that runs the civilian side of the country, and an American force that maintains order in the meantime. That is essentially what I think is involved in a trusteeship.

At the moment, you have the clear and laudable objective of trying to establish a democratic Palestinian state. This is the objective that the president has established and the international community essentially endorses this goal. But there is no mechanism to achieve a Palestinian state, and at the same time, there is no mechanism in place on the Palestinian side for stopping the terrorists. Left to their own devices, the Palestinians cannot achieve either purpose. With Arafat still there, they cannot make progress on democratic reform, and with no effective capability or will to stop the terrorism, nothing happens. Just like the trusteeships established in East Timor and Kosovo and just like the trusteeship the administration is planning to create in Iraq, I suggest that we set up a U.S.-led trusteeship in the Palestinian territories. Under such a plan, the Israeli army would withdraw, a state with provisional borders would be created, and the territory would be put in trust. The trustees would have responsibility for overseeing the building of democratic political institutions, an independent judiciary, and transparent economic institutions. They would also create an effective security apparatus capable of stopping the terrorists, uprooting the infrastructure, and disarming the militias.

The trusteeship would not be able to achieve its objective without a U.S.-led force. This would not be a peace-

keeping force or a buttress force between Israelis and this provisional Palestinian state. The trusteeship would require a fighting force, a special force that would go into the territories and work to recreate and support Palestine as they confront the terrorists and protect the state that was being established. And if, through this trusteeship, the Palestinians succeeded in stopping the terrorism over a three-year period, they would achieve a Palestinian state with final borders that would be akin to what was put on the table by President Clinton in December 2000.

What's your outlook for the near future? Is there any hope of a lasting settlement within the next few years?

I think it's very bleak at the moment. But it's a fluid situation in three respects. The most obvious one is a potential for a major change in the structure of relations in the Arab world as a result of the overthrow of Saddam Hussein.

The second element of fluidity is exhaustion on the Palestinians' side, which results in pressure on the terrorist organizations to ease up on their activities. That is why we see negotiations going on in Cairo between Fatah and Hamas and even Islamic Jihad to establish a ceasefire. I doubt that these negotiations will be successful, but they are a manifestation of exhaustion on the Palestinian side and a demand for change in the way that the Palestinian Authority does business.

The third reason for fluidity is in Israel itself, where you have a similar exhaustion factor, manifest in severe economic circumstances that are making it very difficult for all Israelis. Now we have a situation where one in five Israelis is under the poverty line. That's beginning to really hurt common Israelis, and it is playing on the minds of the decision makers. Particularly, it plays on the mind of Ariel Sharon by making him realize that the status quo is simply not tenable, and that he will have to take a political initiative to deal with the severe economic circumstances.

So whether these three elements of fluidity will produce some light at the end of the tunnel obviously remains to be seen. But changes are definitely occurring, and the hope lies in the fact that because of this horrendous death and suffering, the reality of the need to find a way to live separately in peace is taking hold on both sides. You see it in the opinion polls: even though the majority of Palestinians support suicide bombers and the use of force, and even though the majority of Israelis support the Israeli military responses to the terrorism, there exists a kind of schizophrenia. A strong majority of Israelis would support the territorial deal that was on the table back in December 2000 if there were a responsible Palestinian partner in negotiations, and a majority of Palestinians would accept that same territorial deal. So that's where I think the hope lies; when the political circumstances change, the fluidity we see now may be the harbinger of a change in political circumstances. ♦

Now we have a situation where one in five Israelis is under the poverty line.

MAKING HUMAN RIGHTS TREATIES WORK

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Global Legal Information & Human Rights in the 21st Century

by Oona Hathaway

The adoption of the Universal Declaration of Human Rights in the wake of the horrors of World War II established human rights as a legitimate focus of international attention. In the half-century since, there have arisen nearly 100 universal and regional human rights agreements governing issues as diverse as discrimination against women, state-sponsored torture, and fair trials. Yet, as we embark on the twenty-first century, accompanied by the ongoing war on terrorism and threat of war in the Middle East, there has been surprisingly little talk of these agreements. Despite their ubiquity, human rights treaties have been largely ignored in current debates over how to address the situation in Afghanistan and the Middle East, inviting questions as to how we can make international agreements work more effectively to prevent abuses of human dignity. International human rights treaties are premised on the assumption that such treaties will have some effect on countries' practices. Indeed, this premise lies at the heart of international law. International lawyers have long assumed that, in the words of Columbia law professor Louis Henkin, "almost all nations observe almost all principles of international law and almost all of their obligations almost all of the time." It has become increasingly obvious, however, that the reluctance of international lawyers to examine the efficacy of international law is particularly problematic in the area of international human rights. Unlike some areas of international law, countries have little to gain and much to lose from enforcing human rights treaties against one another. Moreover, because human rights treaties tend to have weak built-in enforcement mechanisms, nations that join treaties can violate their commitments with relative impunity.

And this is, of course, what many of them have done. Iraq, which ratified both the Convention on the Prevention and Punishment of Genocide and the International Covenant on Civil and Political Rights before the United States did, has long engaged in what some consider to be genocidal action against its Kurdish population and has just held an election in which Saddam Hussein was reelected in an uncontested election with 100% of the vote. Afghanistan, which under the Taliban prohibited women's participation in political or civic life and condoned torture as a form of legitimate punishment, had long ago ratified the Convention on the Political Rights of Women, the Covenant on Civil and Political Rights, and the Convention Against Torture.

The enormous expansion in the number of human rights treaties since the creation of the landmark Universal Declaration of Human Rights more than 50 years ago is unquestionably a welcome symbol of the international community's deepening commitment to human rights. Yet it is far less obvious that the burgeoning collection of treaties created to date has had the effects that its proponents intended. Indeed, despite the ongoing push to create and extend human rights treaties, strikingly little is known about their true effectiveness in achieving their central goals.

To begin to fill this gap, I undertook the first large-scale investigation of the effect of human rights treaties on the nations that ratify them. The study analyzed how 166 countries treated their citizens between 1960

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and 1999, looking at five core areas of human rights: genocide, torture, civil freedom, fair trials, and women's political equality. Some of the findings were precisely as one would expect. Countries that ratified the human rights treaties usually had better human rights practices than countries that did not. For example, nations that ratified the Genocide Convention were somewhat less likely to commit genocide than those that had not. In addition, regardless of whether they had ratified human rights treaties or not, democracies generally had better human rights practices than the group of nations as a whole.

Other findings, however, were more surprising. First, although countries that ratify treaties usually have better practices than those that do not, those differences are not as great as one would expect—especially considering the consensual nature of the human rights treaty regime. For example, countries that ratified the Torture Convention warranted a rating of 2.70 on a scale of 1 to 5 (where a 2.70 falls somewhere between "isolated instances of torture," and "some" or "occasional" allegations of torture), whereas those that had not ratified warranted a rating of 2.76—a relatively small difference.

Even more troubling, countries with the worst human rights practices sometimes ratify human rights treaties as often as nations with the best practices do. To take a dramatic example, half of the countries responsible for the most widespread cases of genocide, including Rwanda in 1994 and Yugoslavia in the early 1990s, had ratified the Convention on the Prevention and Punishment of the Crime of Genocide. This was essentially the same rate of ratification as countries that had committed no genocide. Similarly, roughly 40 percent of countries in which torture is reported widely had signed the Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment at the time of the violations. When I investigated whether these patterns could be traced to the treaties themselves or were due instead to other factors associated with ratification and practices, the results were even more perplexing. Treaties do not seem to have a direct, measurable, positive effect on the human rights practices of countries that join them—and, in fact, might even have a negative effect in some cases. From an examination of how treaties shaped countries' human rights practices in the context of a range of other factors that might be expected to influence countries' behavior—including the level of democratization, involvement in civil or international war, economic prosperity, global interdependence, aid dependency, and economic growth—there was no clear evidence of a positive effect, though ratification of treaties by fully democratic nations did sometimes appear to be associated with better practices. In fact, in the relatively few instances in which there were clear links between treaty ratification and measures of country practices, ratification often appeared to be associated with *worse* practices than would otherwise be expected.

These findings do not necessarily mean that human rights treaties actually make things worse. It is possible that countries with worse human rights practices are simply more inclined to ratify human rights treaties. Or perhaps we merely know more about the violations committed by countries who sign human rights treaties, making countries that do not sign

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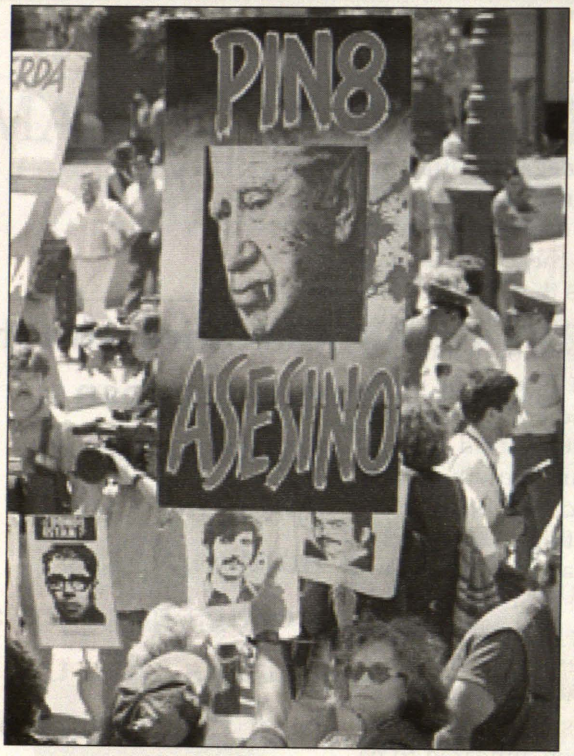

treaties look better than they truly are. Nevertheless, I did not find a single treaty for which ratification reliably seems to improve human rights practices and seven for which ratification seems to be associated with worse practices. At least this much is clear: there is little evidence that human rights treaties have a direct and immediate positive effect on the behavior of ratifying countries and some evidence of just the opposite.

This suggestion is not as outrageous as it might at first appear. Ratification of a human rights treaty, after all, allows a government to send a message to the world that it is committed to the principles outlined in the treaty. This message may be honest and sincere. But, as the examples of Iraq and Afghanistan suggest, if the treaty is poorly monitored and enforced, countries face little or no penalty for failure to match rhetoric with action. At the same time, countries that ratify human rights treaties may face less pressure to improve their human rights practices. Treaties, then, might allow some governments to substitute words (in the form of ratification) for deeds, thereby slowing, rather than hastening, improvements in human rights.

There is little evidence that human rights treaties have a direct and immediate positive effect on the behavior of ratifying countries.

If this is true, what can be done to improve human rights? First, it is important to recognize that, in spite of the evidence, treaties probably do have important positive effects on state behavior. Even if human rights practices are worse than expected in the countries that ratify human rights treaties, the treaties may still foster gradual improvements in human rights practices in *all* countries by changing expectations for state behavior. Indeed, if there were changes in ratifying and non-ratifying countries alike, such changes would not be detected by analysis, which can detect only effects isolated to ratifying countries. Human rights treaties may have positive effects in ratifying countries over the very long term by creating public commitments to which human rights activists can point as they push nations to make gradual, if grudging, improvements down the road. For example, China's signature of the Covenant on Civil and Political Rights in the late 1990s may have initially offset some pressure for real changes in China's practices, but it may also provide a tool that human rights groups can use to leverage more significant changes in China's practices down the road. Second, the results of my study do not argue for abandoning the human rights treaty system but instead suggest ways in which it can be strengthened to better achieve its goals.

It may be time to reexamine the current reliance on self-policing. A possible approach would be a stronger system of independent expert monitoring, which would be more likely to expose governments' failures to comply with their treaty commitments. A central key to unlocking the potential of the international human rights treaty system would be to increase global awareness of countries' human rights practices. The reason that some countries can use human rights treaties to offset pressure for improvements in their practices is not only because the treaties do not include strong enforcement mechanisms—mechanisms that, in truth, would likely be underutilized if they did exist. Rather, they are able to ignore their commitments because they can expect that little information about their actions will be available to the world community. Nations that join human rights treaties and then fail to abide by them are often hiding behind a shield of ignorance. For such treaties to achieve their desired effects, guardians of human rights must remain vigilant, viewing ratification of treaties not as the end of the struggle for human dignity, but as a promising beginning in an evolving campaign. ♦

MAKING AND BREAKING DEMOCRACIES

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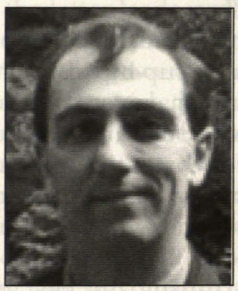
Societal Conditions Conducive to Democracy

by Alastair Smith



A growing theme of public discourse over a war in Iraq concerns the nature of a new regime following the fall of Saddam Hussein. While the obvious goal would be to install democracy in place of repressive regimes, this democracy might ultimately fail in Iraq because it is not in the interests of the key political actors in either Iraq or the U.S. In this essay, I explore the incentives to make and to break democracies. By investigating the consequence of a shift towards democratic institutions, I explain which political actors gain from such a transition — and thus which actors will support democratization.

Of course, democracy is no panacea. As Winston Churchill said, "Democracy is the worst form of government except all those others that have been tried from time to time." Yet across the broad range of polities, it is democracies that have wealthier, more productive, healthier, longer-living citizens, who are better educated, enjoy civil liberties, property rights, and protection and justice under impartial laws. The imposition of democratic institutions in Iraq would radically improve the welfare of the vast majority of its citizens. Unfortunately, from the average Iraqi's perspective, democracy is not in the interests of those most influential in the choice of political regime.

Democracy's practical advantage is that leaders require the support of large proportions of the population in order to stay in power. This requirement does not exist in a monarchy, a military junta or a corrupt electoral system, where leaders' survival in office depends upon much smaller coalitions of supporters. The breadth of a leader's winning coalition forms the fundamental features of all political systems.

Leaders survive in office when they offer their supporters more benefits than challengers can credibly offer. For leaders of small coalition systems, this is relatively easy to do. They expropriate society's economic resources and use them to enrich themselves and their supporters Saddam Hussein has effectively converted economic sanctions against Iraq into a means through which to reward his supporters. Through "smuggling rights," his cronies earn vast riches at the expense of the general populace. By rewarding those who control the state's instruments of repression, Hussein finds many willing volunteers for these roles. In Iraq, as in small coalition systems throughout the world, leaders focus on private benefits for supporters while effective public policy receives scant consideration.

Dividing economic spoils between supporters is not an effective political strategy for democratic leaders, since there are simply too many people who must be rewarded. Political competition focuses instead upon the provision of effective public policy, which benefits society in general. Of course, democratic leaders still provide some private benefits for their supporters. In the U.S., for instance, as a broad generalization, Republicans support tax cuts that favor the rich, their core supporters; while Democrats seek to increase transfer payments to the poor, their traditional supporters. Yet despite these attempts to favor one segment of the population over another, the majority of political competition focuses on who has the best plan for improving economic conditions.

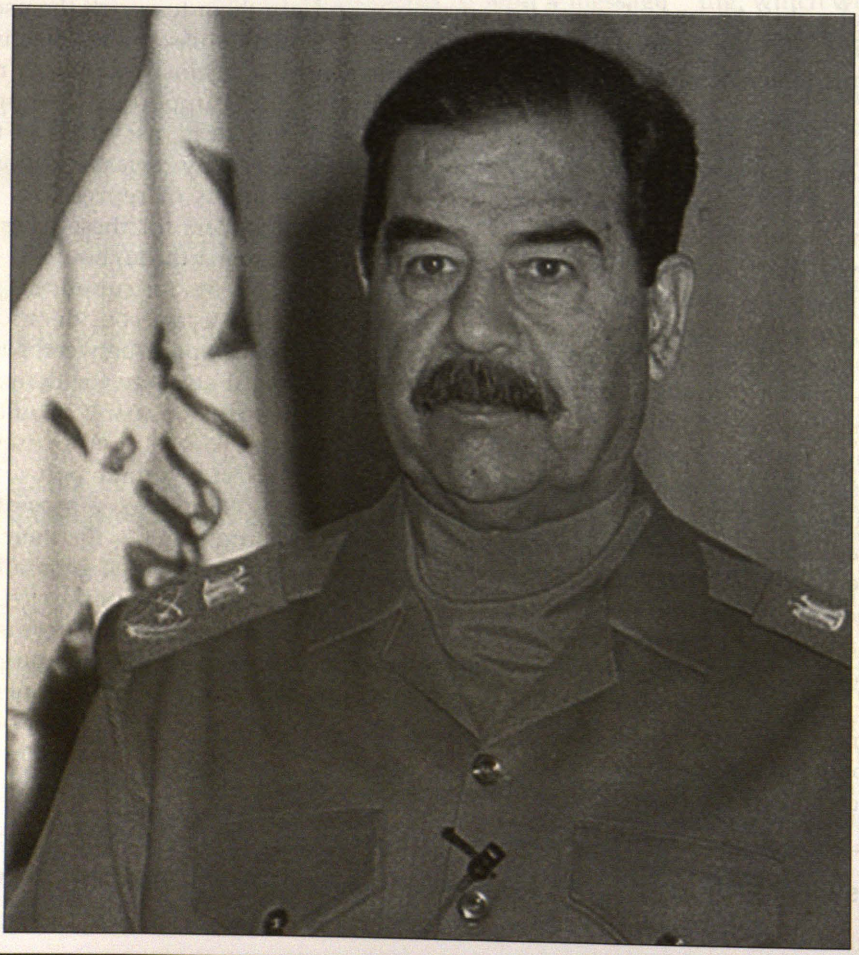
Alistair Smith is an Assistant Professor in the Department of Politics at New York University.

Democracies emerge as a result of popular protest and revolution. Unfortunately, revolution often brings a dominant individual or group to the fore.

Although different politicians offer different private benefits, the value of these rewards is low in democracies relative to public benefits. Democratic political competition revolves around the best public policy ideas. Democrats that experience even relatively mild public policy failures are deposed.

In contrast, leaders in small coalition systems survive despite massive public policy failures. In such systems private goods, not public goods, drive political competition. While a challenger might offer the incumbent's supporters greater rewards than they currently receive, such offers lack credibility. Following a transition, new leaders rearrange their coalitions around those they regard as core supporters. Those contemplating defection from the incumbent realize that although they might have been instrumental in bringing a new leader to office, this does not guarantee them a place in his new winning coalition. When coalition size is small, and when the leaders can draw their potential supporters from a large "selectorate" — the pool of potential supporters — defectors face a high risk of being excluded from future winning coalitions. When coalition size is small, the majority of rewards are private in nature so the cost of exclusion is high. Given the combination of high risks and high costs, small coalition systems —particularly those with large selectorates —promote loyalty. Not only do leaders in corrupt electoral systems have long tenures in office, but the strong loyalty norm engendered by picking a coalition of a few from the many also enables leaders to steal their country's riches.

The size of a leader's coalition and the size of the group he or she chooses this coalition from drives policy choice and leader survival. In democracies, leaders endeavor to implement the best public policy —hence the productivity and wealth of democracies. Despite the efforts that democrats make towards instituting the best policy, leaders are regularly thrown out of office. In small winning coalition systems, on the other hand, bad policy is good politics.



Leaders prefer small coalition systems with large selectorates. Such systems encourage high loyalty, giving leaders great discretion. When the choice of institutional arrangements is left to leaders, they shrink coalition size wherever possible. Citizens have different institutional preferences. Those citizens who are outside the winning coalition always want to increase the coalition size. Doing so induces leaders to work harder on their behalf, producing more public good. It also improves their prospect of entering the coalition and encouraging institutional reforms.

These contrasting institutional prefer-

ences of leader and outsider are reflected in revolutionary and protest movements. Revolutionaries espouse the value of increasing coalition size. Nelson Mandela in South Africa, Jawaharlal Nehru in India, Robert Mugabe in Zimbabwe, and George Washington in the United States, or Fidel Castro in Cuba, Mao Zedong in China, Jomo Kenyatta in Kenya, and Ho Chi Minh in Vietnam — all called for a more inclusive political system during their process of coming to power. Yet, once in power, their institutional preferences reversed. Following their victories, the latter leaders all became the dominant political actors in their countries. With the power to determine institutions, they reneged on their earlier claims and implemented corrupt electoral systems rather than maintaining a large winning coalition.

We might then wonder why, following their victories, Mandela, Nehru, Mugabe and Washington continued to promote democracy (although Mugabe has subsequently shifted to a small coalition system). These leaders either did not win outright victories or had to share victory with numerous other groups. Both Mandela and Mugabe reached compromise agreements with the former ruling elites that were designed to protect the interests of the rival groups even as power was transferred from one side to the other. That is, the new rules of governance were dictated by a coalition agreement that insured participation in the future winning coalition by at least some members of each competing side. The rules, therefore, were not dictated by a single unitary victor. Such was not the case in many instances of African decolonization.

Although the Americans defeated Britain militarily and the Indians defeated them morally, in neither case could a single unitary organization or group take exclusive credit for victory. The thirteen American colonies had divergent interests and each was determined to maintain a say in government. Although the Congress Party was the pre-eminent pro-independence force in India, it was highly fractionalized and rivaled by the Muslim League and a host of smaller political parties and interest groups. Following the assassination of Mohandas Gandhi, India had no dominant leader. Therefore Nehru never achieved predominance in spite of becoming Prime Minister.

Democracies emerge as a result of popular protest and revolution. Unfortunately, revolution often brings a dominant individual or group to the fore and once this leader emerges, his institutional preferences shift. The creation and maintenance of democracy from the inside requires that the revolutionary leader does not attain a predominant position.

Political institutions also shape relations between states. As demonstrated above, small coalition systems are driven by private goods, hence the war aims of non-democracies are driven by the desire to accumulate additional resources, such as land, that can be used to provide private goods. In contrast, large coalitions' focus on public goods ensures that democracies fight wars over policy, not land. As Secretary of Defense Donald Rumsfeld recently stated, "The United States covets no one else's land, certainly not Afghanistan."

Unfortunately, while democracies might obtain policy concessions from other nations, maintaining them is problematic. Once the troops have left the field, it is all too easy for nations to renege and revert to their original policy. The recent cases of Iraq and North Korea make this only too clear. An attractive option for democracies is to remove the incumbent leader and replace them with a willing puppet. Such a move helps create the public policy successes that a democratic leader needs to stay in power. Yet puppets are no good unless they survive domestically. In order for a puppet to ignore his or her own nation's public policy demands and implement the foreign democracy's preferred policies, he or she cannot be beholden to the large coalition of a democracy.

When one initially thinks of nation building, one is tempted to think that democracies foster the ideals of liberty and self-determination abroad. While normatively attractive, this is wrong in both theory and fact. As the problem of installing a puppet shows, a democratic leader enhances his or

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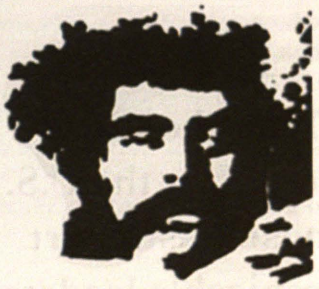

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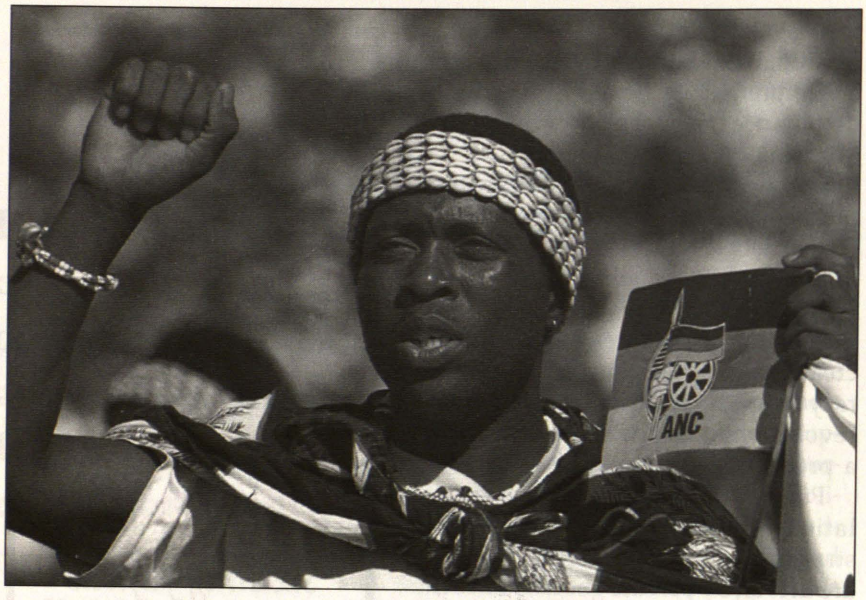

her survival prospects through foreign policy success. Installing leaders and creating foreign regimes that do not emphasize good public policy makes it easier for democratic leaders to obtain the foreign policy goals that help keep them in power.

Consequently, it is a political expedient for democratic leaders to create and support autocratic regimes abroad. The empirical record supports this claim. Throughout the Cold War, the U.S. chose to support despicable leaders, such as Syngman Rhee in South Korea and Ngo Dinh Diem in South Vietnam, rather than promoting reform. In the Dominican Republic and Chile, the U.S. supported non-democratic regimes over democratic alternatives.

Throughout the Cold War, the U.S. chose to support despicable leaders, such as Syngman Rhee in South Korea, rather than promoting reform.

Following its involvement in the 2002 overthrow of the Taliban regime in Afghanistan, the U.S. had enormous nation-building potential. It chose to support a government of tribal leaders lead by Hamid Karzai, a militia leader who demonstrated to be amenable to U.S. interests. Such a political system is identified with a small coalition and a small selectorate. The small coalition ensures a focus on private goods. This relatively small selectorate, however, means that Karzai's supporters are not especially loyal; they have good prospects of being included in future coalitions. Under these arrangements, Karzai must produce private goods rather than improve the lot of the average Afghan if he wishes to survive.

From the perspective of the U.S., such institutional arrangements are optimal for obtaining its preferred policies; leaders are unfettered by domestic policy constraints, yet they are vulnerable to any interruption in flow of private goods. The lack of attention to public goods means that economic shortfalls are always a possibility, so such leaders are particularly likely to offer policy concessions in exchange for foreign aid. Indeed, leaders from small coalition, small selectorate systems are more likely to be recipients of U.S. foreign aid than leaders from any other institutional configuration.

Viewed in this light, the prospects for democracy in Iraq are small. While the most salient Middle East policy goals of the U.S. population are stable oil prices and a peaceful resolution of the Israeli-Palestinian conflict, it is not in the interests of the President to promote political liberty for the people of Iraq. Even if the U.S. created a nominally democratic regime, any leader installed would want to reduce winning coalition size. Since such a move favors U.S. interests, and domestic groups are unlikely to have the sufficient influence to counter the prestige of U.S. backing, democracy will back slide.

Unless public preferences in foreign nations coincide strongly with U.S. interests, the U.S. has incentives to stifle rather than promote democratic reforms. Without external support, those wishing to promote democracy within their nation must rely on popular protest and revolt. Yet even here the promotion of democracy requires a fine balancing act. If protest leaders become too successful and obtain an outright victory, then their interests switch from enlarging the inclusiveness of the political system to eroding coalition size. Such oscillations in political systems are all too familiar, and unfortunately, the majority of nations are on their own. While the large coalitions inherent in democracy force democratic leaders to focus on societal welfare within their countries, this benevolence does not extend across borders. ♦

DEMOCRACY AND DICTATORSHIP IN AFRICA

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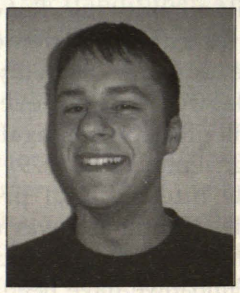
One Nation's Hope is Another's Despair

by Samuel Landenwitsch



By all accounts, December 27, 2002 was a historic day in Kenya. "Democracy is alive and well in Africa", exclaimed Johnny Carson, the American ambassador to Kenya. A victory in free elections by the opposition National Rainbow Coalition (NARC) ended 40 years of rule by the Kenyan African National Union (KANU) and seemed to prove that peaceful, united citizens could bring about effective change in ending single-party states.

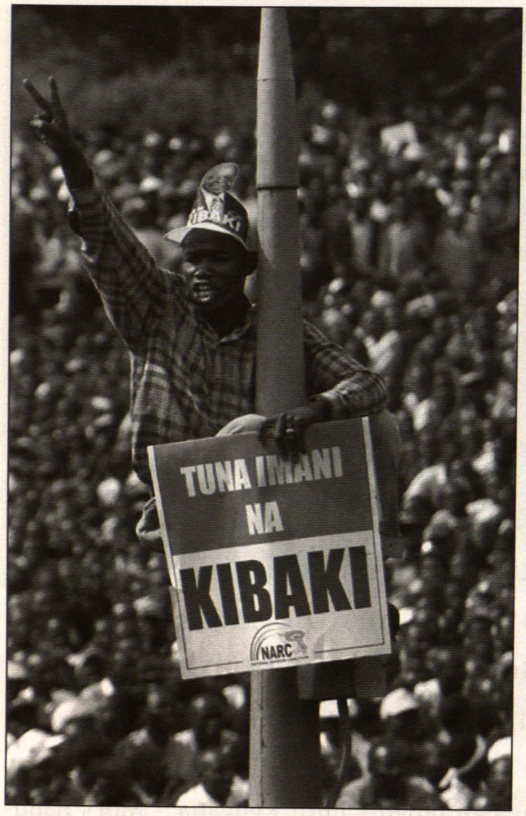
But when one turns south to Zimbabwe, another former British colony, the rosy prognostications appear less sound and even naïve in the face of the radical violence and corruption of President Robert Mugabe and the ruling Zimbabwe National Union Patriotic Front (ZANU-PF). Until last December, the regimes of Mugabe and former Kenyan President Daniel Arap Moi had run in parallel, with each leader serving as a dominant – and destructive – force in their nations over the last two decades. Yet while 2003 may mark a turning point in the history of Kenyan democracy, Mugabe's power is as firmly entrenched as ever.

Moi controlled Kenya for almost 24 years, and his "presidency" became notorious for corruption, graft, and widespread political patronage. Perhaps the most telling image of Moi's looting of Kenya is one of his many presidential mansions that overlooks the Kaberia neighborhood on the fringe of Nairobi, whose 700,000 inhabitants make it the largest slum in Africa. Under international pressure, a multiparty system was introduced in 1991 and Moi won the first two presidential elections in 1992 and 1997, although both electitons were marred by violence. Apparently induced by the United States and the United Kingdom, Moi chose to abide by term limits set in the Kenyan constitution and step down at the end of his last five-year term, setting the stage for last December's elections.

The campaign pitted Uhuru Kenyatta – Moi's handpicked successor and the son of Kenya's founding father, Jomo Kenyatta – against the National Rainbow Coalition's Mwai Kibaki, a vocal opponent of KANU since multiparty politics were instituted. Although it had been formed only two months before the election, the National Rainbow Coalition's popularity was bolstered by defections in October of several key figures in the government following Moi's choice of Kenyatta as the KANU candidate. Raila Odinga, a fiery orator and popular public official, initiated the walkout and was instrumental in bringing over a significant number of KANU members to NARC. Kibaki won 63 percent of the vote, twice Kenyatta's support, and NARC won 124 seats in the 210-member parliament, compared to only 63 for KANU. Four separate groups – including both Kenyan and international watchdogs - certified the elections as fair and nonviolent.

Kibaki and his allies swept into office with a range of ambitious proposals, all of which will surely generate resistance from entrenched bureaucrats and KANU hardliners. At his inauguration, Kibaki loudly denounced the Moi regime, "I am inheriting a country which has been badly ravaged by years of misrule and ineptitude. There has been a wide disconnect between the people and government." He swiftly announced his intentions to "offer a responsive, transparent and innovative leadership." Kibaki has pledged to cut the bloated civil service, reform many of the state-run services, and create a new constitution that severely curtails the president's powers – efforts intended to earn the trust of the West in a legitimate

Samuel Landenwitsch is a freshman in Timothy Dwight College.



Kenyan government and thereby reestablish aid flows. The European Union and the United States froze aid to Kenya in 1997 after Moi failed to rid his government of corruption, and the International Monetary Fund (IMF) also halted aid in 1997 and again in 2002. The new government could win almost $350 million in IMF and World Bank aid almost immediately, with British and American funds following on its heels. Such assistance will be necessary to stimulate growth rates, which fell from around seven percent in the years prior to Moi's rule to two percent during the 1990s.

In retrospect, Kenya was able to undergo a peaceful transfer of power because it met three key conditions. First, NARC unified the entire range of opposition parties in Kenya and won more votes than Moi ever earned. Frequently African opposition parties are fragmented and unwilling to put aside their separate goals and ideologies for the welfare of the state. Second, defections by key members of the ruling party allowed opposition groups to gain legitimacy in the eyes of the average Kenyan voter. Finally, the existence of constitutional term limits ensured that Moi would have no international or legal legitimacy had he stayed in power.

While international pressure against Moi's government was united, recent international efforts to encourage reform in Zimbabwe have been inconsistent.

While Kibaki faces a daunting task in Kenya, the difficulties he faces pale in comparison to those of the Zimbabwean opposition. Morgan Tsvangirai, leader of the Movement for Democratic Change (MDC) in Zimbabwe, and other MDC members have been whipped with chains and beaten by President Robert Mugabe's ZANU-PF for several years. Parliamentary elections in October were poisoned by violence and corruption directed by the ZANU-PF. The World Food Program reported that its food aid in the southern Insiza district — directed towards the two-thirds of the population who are at risk for famine — was seized by Mugabe thugs and used to bribe Zimbabweans into voting for ZANU-PF representatives. An MDC candidate in the western city of Bulawayo was forced to flee after being fired on by ZANU-PF youth soldiers. Not surprisingly, ZANU-PF gained seats in the election, which was not certified by independent observers since they were not allowed into the country.

Zimbabwe's plight is particular striking given the history of the former British colony. Mugabe was widely considered the poster child for newly independent African states – a man capable of addressing Zimbabwe's racial and economic problems following almost fifteen years of white minority rule. But despite beginning his rule with democratic promises, he has heavy-handedly dominated Zimbabwean politics ever since leading a guerilla uprising against the Rhodesian government in 1979.

Yet while international pressure against Moi's government was united, recent international efforts to encourage reform in Zimbabwe have been inconsistent. President Thabo Mbeki of South Africa, Zimbabwe's largest trading partner, could possess significant influence with Mugabe, but he has been unwilling to forcefully denounce Mugabe's regime. In particular, Mbeki failed to punish Zimbabwe after the March presidential elections in which Mugabe defeated Tsvangirai in a result the opposition leader termed "daylight robbery." While Mbeki consented in suspending Zimbabwe temporarily from the Commonwealth of Nations, he quickly initiated the reestablishment of diplomatic ties and a South Africa-Zimbabwe Commission for maintaining cooperation in trade and finance. At a November conference in Pretoria, Nkosazana Zuma, the South African foreign minister, said in reference to European and American sanctions on Zimbabwe, "We don't think that's a situation which should continue for a long time…Even if Zimbabwe made mistakes, the point is that we need to move to the future." As recently as January 26, South Africa and Nigeria also promised to block any sanctions that the Commonwealth could place on Zimbabwe.

Zimbabwe's MDC comprises a united opposition to Mugabe's government and enjoys the support of the people – most Zimbabweans would likely be pleased to see the removal of a leader who delib-

erately starves them. But two important differences distinguish Kenya and Zimbabwe, and the first is the contrast between Moi and Mugabe. Both men are approximately the same age and their governments were equally notorious for corruption and violence, but Moi was constrained by tough constitutional term limits in a state that has come more and more to respect the rule of law after two elections. Mugabe, on the other hand, has been unwilling to even consider plans for an eventual transfer of power. Secondly, the enabling actions of South Africa and other African states have made clear to Mugabe that he will never face real consequences for his actions - a decision that both prevents reform in Zimbabwe and diminishes the legitimacy of other African leaders as supporters of free democracy. As Tsvangirai said following the March elections, "In my view what the African brothers are doing is to undermine their integrity and their credibility in the face of the world." In the long term, South Africa has essentially told Robert Mugabe that he is free to rule as he pleases. With the implicit support of his neighbors, Mugabe has no incentive to step down.

Kenya could stand as an example of the efficacy of peaceful opposition and the ballot box. The 40 percent of the population that is unemployed and the 50 percent below the poverty line will probably not see significant improvements in their situations for many years, as the entrenched bureaucracy and fiscal sacrifices that will be necessary to enact many of his platforms may hinder Kibaki's progress. This combination of high expectations and slow change may cause disappointment among many of Kibaki's supporters. But the United States and European Union can play a key role in ensuring a peaceful transition to free democracy by rewarding Kibaki for his reforms with aid and cooperation. Incentives for increased transparency and rooting out corruption could make a profound impression on Kenyans and other Africans, demonstrating that the West recognizes and encourages such advances. On the other hand, if Kibaki fails to persevere in his reforms, the West must demonstrate its disapproval if it is to foster long-term stability and growth in Kenya.

Western pressure, paired with African cooperation, could be similarly effective in Zimbabwe. Outsiders seeking to affect change face an ethical conundrum, as they seek to punish the ruler of Zimbabwe without hurting its citizens any further. Yet Zimbabwe may be heading towards an unavoidable crisis, as HIV has infected over a quarter of the population, and poverty and unemployment afflict over 60 percent of Zimbabweans. In all likelihood, popular discontent will manifest itself soon, and the United States and the European Union should be prepared with humanitarian aid and a plan to reconstitute the government in the case of Mugabe's demise. Zimbabwe and Kenya do not pose the only tests for advocates of free democracy in Africa. Nigeria, governed by the military dictatorship of Olusegun Obasanjo, will have its presidential elections in April. Along with South Africa and Australia, Nigeria is a member of a powerful troika in the British Commonwealth as well as one of the hegemons in Africa. A free and fair election would help cement the strides made by Kenya, and a civilian victory in Nigeria and peaceful passage of power could mark a turning point for African democracy. With an effective use of diplomatic pressure from the West, Kenya could serve as the paradigm for democratization and reform throughout Africa. ♦

Kenya could stand as an example of the efficacy of peaceful opposition and the ballot box.

Outgoing Kenyan president Daniel arap Moi (L) gives the sword of the Comander in Chief of Kenyan Armed Forces to the new Kenyan president, Mwai Kibaki.

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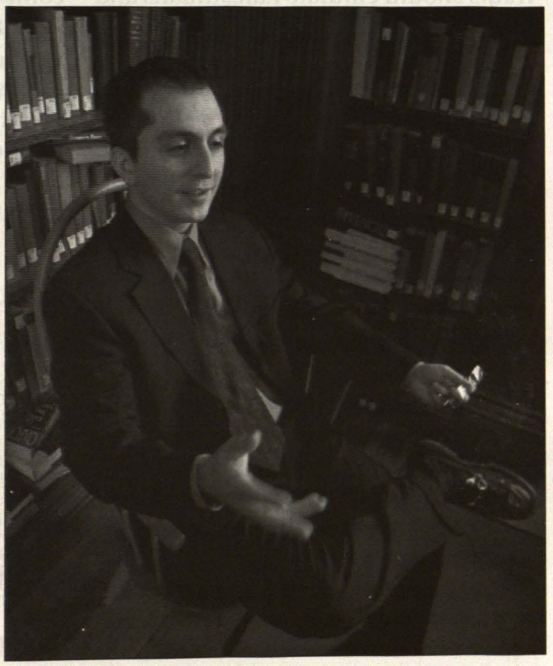
STIRRINGS OF REVOLUTION

An Interview with Amir Afkhami



Amir Afkhami is a Doctoral Fellow in History at Yale University and a M.D. candidate at George Washington University School of Medicine and Health Sciences. He has had articles published in Middle East Intelligence Bulletin, National Review, the Farsi-language Keyhan Weekly, and numerous historical and medical journals. Afkhami has also contributed several articles to the Encyclopedia Iranica and given lectures around the country on the topics of medicine and Iranian history. A resident fellow of Pierson College, Afkhami sat down to speak with The Politic *on January 30.*

Politic: In his 2002 State of the Union address, President Bush labeled Iran as part of an "axis of evil" that included Iraq and North Korea. Why was Iran included on the list?

Afkhami: According to the State Department, the Islamic Republic of Iran is the world's "most active state sponsor of terrorism." Iran provides funding, weapons, training, and sanctuary to terrorist groups operating in the Middle East and elsewhere. Tehran-backed political assassinations and bombings have, according to the State Department and the CIA, left more than 1,000 dead in 200 terrorist strikes since militant Islamists toppled the Shah in 1979. Iran is among the few states in the world that consistently murder its dissidents, even into Khatami's tenure as President. In 1997, a German court determined that a committee of high-level Iranian officials — Supreme Leader Khamenei, former President (and current Expediency Council chairman) Rafsanjani, the Foreign Minister and the Intelligence Chief— directly issued hits against dissidents in Europe. The Islamic Republic also invests heavily in the development of weapons of mass destruction, even at the expense of its deteriorating economy. President Bush was very justified in labeling the Iranian regime as a charter member of the "axis of evil." Ironically, despite the outrage voiced by many American academics at the label, most Iranians agree with Bush and say his moral clarity bolstered the democracy movement inside Iran.

What effect will a war on Iraq have on U.S.-Iranian relations? Will it strengthen the clerical hold on the country or will it provide reformers with an opportunity to mobilize?

The impact depends upon the result. If the U.S. succeeds in democratizing Iraq, it will put tremendous pressure upon the Islamic Republic. After all, recent polls indicate that the vast majority of the Iranian people—more than 80 percent—favor separation of mosque and state and an end to the Islamic regime. Up until now, the clerical regime has justified its existence partly based on the fact that it has been able to point to certain neighbors, including Iraq, and say, "Well, relative to these countries, we are treating you better. You have more freedom. We are not a democracy, yet we are a 'relative' democracy." This is a sham!

What many pundits have overlooked is the very tight relationship between the Iranians and the Iraqi Shi 'a, particularly Ayatollah Mohammad Baqir al-Hakim's Supreme Council for the Islamic Revolution in Iraq (SCIRI). One of the things that you shouldn't forget is that many of the clerics in Iran who are now in power in the Iranian government are actually of Iraqi origin, of very recent Iraqi origin. Most prominent among them is the head of the repressive judiciary in Iran, Ayatollah Mahmoud Shahroudi, born in Iraq in 1948. The Iranian

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Revolutionary Guard is also closely aligned with the Shi'a opposition groups. The Revolutionary Guard help SCIRI, which has a large armed militia (the Badr Corps) which it uses to bolster its power and Iran's theocratic vision. This can become a serious impediment to Iraqi and American aspirations of democracy in Iraq in the future. What will the U.S. do once Iraqi militants, spurred on by Iran, strap bombs to themselves and blow up American soldiers? The editor of the official *Kayhan* daily argued in January that Iraqis should emulate Palestinians and Lebanese "martyrdom operations" against Americans. Importantly, these disgraceful words were not condemned by the allegedly reformist president, Mohammad Khatami. So much for Khatami's dialogue of civilizations.

In what ways is Iran prepared to make the transition to democracy?

Democracy in Iran is rooted not in the government, but in the people. Increasingly, Iranians take to the streets in marches organized by students, women's circles, unions, and other groups. Iranians, in essence, have become savvy enough to bypass the regime and exercise their democratic rights within civil society. Indeed, Iranians no longer talk about a dichotomy between hardliner and reformer, but rather between government on one hand, and dissidents and democrats on the other. This is something that I think has been overlooked by both the State Department and certain European countries who think that the only means towards salvation in Iran is to deal with the so called "Reformist" faction.

What role, if any, do you think Shi'ism could play in a potential Iranian democracy?

One of the main tenets of Shi'ism that separates it from mainstream Sunni Islam is its emphasis on *ijtihad*, or the right of a knowledgeable individual to interpret religion or the Scriptures as he sees fit. Actually, through the creation of the system of *velayat-i-faqi*, or rule by the Supreme Leadership, Khomeini wrecked one of the most important tenets of Shi'ism, which is the emphasis on individual power of interpreting Scripture, or a sense of freedom to follow the interpretation of Scripture that you want to follow. Having said that, in Iran today, I don't think that Shi'ism or religion on a popular level really matters anymore, whether Shi'ism is more democratic or less democratic, because religion, or the institutional religion in Iran, has become discredited. It has become discredited because many Iranians see most of their ills—economic, political, and social—to have been brought about because of religion. They blame religion because of this close affiliation of religion and state. You have clerics running the levers of power, so if something goes wrong on a governmental level, who gets blamed? The clerics and the religion get blamed.

This is one of the reasons why so many clerics now condemn the Islamic government. Ayatollah Taheri is one example. In July, Taheri resigned his post as Friday prayer leader in Isfahan in protest of the government's corruption, oppression, and the loss of religious and spiritual values amongst people. Grand Ayatollah Montazeri, once Ayatollah Khomeini's chief deputy, has suffered years of imprisonment for voicing criticism of the Islamic Republic's authoritarianism. What are the impacts of this? People are invigorated by the opposition coming from within religious circles. They increasingly look away from any form of religious rule no matter how liberal and look instead to secular democracy. The opposition to religion in politics has become overt. In this spirit a prominent slogan during the recent protests was "death to the Taliban in Kabul *and* Tehran", referring to the Iranian clerical leadership.

There's also a social impact. A recent set of articles called "Sex and the City in Iran" by Yale Medical School Professor Ramin Al-Nahri came out in the popular Iranian online magazine Guya, and they basically describe how Iranians today are using sex as a form of protest in the country. On the one hand, it's well known that Iran has a huge

number of prostitutes. Prostitution is rampant in Iran. And actually, they've been catching clerics who have been running brothels or running prostitution rings and export women to Gulf Arab countries to make money. Of course, a good bit of that is due to economic malaise. But among the middle and upper classes, exercising sexual freedom or having sex has become almost a sort of subaltern form of protest against the government.

After massive student protests, and after a petition signed by all 100 members of the Iranian parliament a few weeks ago, the leading clerical dissident Grand Ayatollah Hussein Montazeri was finally released from house arrest. Is it really a score for reformists?

Well, what you have to understand is, first of all, this myth about "Reformists" and "conservatives" within the Iranian government. There is no question that there are factions within the government who have different social agendas, but inherently all of them exist for the sole purpose of the survival of this Islamic republican system.

The problem is not the Reformists or the Conservatives. The problem is a flawed constitution. The problem is a bankrupt government. And Iranians realize this, and the student groups realize this. So when Montazeri was let out of prison, it was a very calculated move on the part of the "Conservatives". The decision to let Montazeri out of prison did not happen because of President Khatami or Foreign Minister Jarebi—they were away in India! It happened because the Supreme National Security Council (SNSC) decided to let him go. And this Council is also an extra-governmental body, in which many unelected leaders sit.

This is to say that decisions in Iran are not made by Reformists or Conservatives. Decisions are made by certain shadowy groups who sit in the back, who are constituted of both Reformists and Conservatives, but they're dedicated to one thing – the survival of the system.

Assuming that Iran is able to totally reform the government and turn it into a secular democracy, will they ever be able to divorce themselves from the attachment to terrorism? What is the link with terrorism, and who really supports Hezbollah in the Iranian government?

The problem with the Iranian system

Iranians have become savvy enough to bypass the regime and exercise their democratic rights within civil society.

Now if you don't have a secular democratic system, then it will be very hard for the nation to divorce itself from terrorism.

of government is that, in essence, it is almost a gangland system of government, a mobster system of government where people have territories. It's not a monolithic system, like we're used to in our countries, or in Western Europe. I think if there is a transparent secular democratic system in Iran they will be able to divorce themselves from Hezbollah. They said so in protests. The same goes for the Palestinian issue and the support of Hamas, which Iran has been linked to. Although the major bulk of Iranians, like many people in the world, obviously feel bad for the Palestinians and their plight, they nonetheless don't believe that the government should be funneling money there to terrorist groups. Protests by workers' unions, about three or four months ago, said, "Iran before Palestine." They actually cried out, "Think about your own people before harping about what's going on in Palestine." In a secular democratic system, these people have a voice.

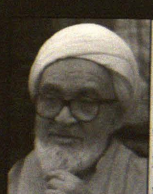
Now if you don't have a secular democratic system, if you have a religion that plays an inordinate part in government, then it will be very hard for the nation to divorce itself from terrorism. A reason for that is, religious groups in Iran have independent financial sources, almost empires. These are religious foundations. The Foundation for the Oppressed, for example, makes Yale's endowment look puny. It is also the organization with which the European Union trades in its engagement policy, and the organization which bankrolls Hezbollah. A major portion of the money that goes to terrorism in Iran comes from these religious foundations. Plus, as it stands, they are not state controlled. In a secular democratic system, the religious foundations would fall under state scrutiny. At least they wouldn't be allowed to run their own foreign policy system, as they are right now.

power players in iran:

Mohammed Khatami
Born January 1, 1943, Khatami previously served as cultural advisor to President Rafsanjani and head of Iran's National Library. In 1997, he was elected with 70% of the vote on a moderate "civil society" platform stressing gradual reform within the existing limits of the Iranian constitution. In his six years as President, Khatami has made little progress in passing reform-minded legislation, and has left all foreign policy and major executive responsibilities to the clerical council and the Supreme Leader Khamanei.

Hashemi Rafsanjani
Born in 1934 in the province of Kerman, Rafsanjani was elected President with 95% of the vote in 1989, and was narrowly reelected in 1993 on a platform of privatization and openness with the West. He was chosen as Speaker of the Majlis (Lower House of Parliament) in 1980, where he gradually shifted his loyalties to the clerical hardliners led by Khomeini. Since the late 80's, Rafsanjani has demonstrated an unwavering support for the Iranian regime and has benefited from its economic and political patronage.

Grand Ayatollah Ali Khamenei
Born in 1943, Khamenei succeeded Ayatollah Khomeini as Supreme Leader in 1989. During the 80's he served on the Grand Council of the Islamic Republican Party and as deputy of the Ministry of Defense. In the years before the revolution, Khamenei helped organize numerous popular demonstrations in Qom. Khamenei is known to be an arch-conservative and extremely religious. His only real political setback to date occurred in 1997 when his nominee for President was soundly defeated by the reform-minded Mohammed Khatami.



Grand Ayatollah Hussein Ali Montazeri
Born in 1922, Montazeri was a close ally to Ayatollah Khomeini, and the obvious choice for Khomeini's successor before his death in 1989. However, Montazeri was forced to resign after criticizing the regime's anti-democratic principles and distortion of Islam. From 1989-1998, Montazeri was the most prominent voice for reform among the clerics in Iran. In 1998 he was confined to house arrest, where he continued to push for reform by issuing secret communications. Montazeri was finally released from house arrest in February of 2003.

I think it should be very easy for Iranians to divorce themselves from Hezbollah. Most of Hezbollah's links are with the worst, most conservative, most antiquated members of this regime. Hezbollah has essentially served as the regime's muscle, to do what Iranians won't do for the regime abroad. Even as late as the 1990s, many of the terrorist acts against [Iranian] dissidents were not done by Iranians but by Hezbollah, because Iranians were less and less willing to do the regime's bidding of killing their own people. In recent student protests on the anniversary of the 1999 protests, the Iranian government imported from Lebonan, through Syria, Hezbollah enforcers and Palestinians from refugee camps to beat up Iranian students in the streets because they could no longer rely on their own security apparatus. So, Hezbollah is needed by this government to foment trouble right now.

Also, one survival technique utilized by the Islamic republic, according to its past history and from what's come out of opposition reports, is to encourage an attack on Iran, whether by Israel or by the United States, and thereby distract its own people from their problems. There is a precedent for this. During the Iran-Iraq War [1981-89], the clerics used the war to shut out every form of opposition, to track down every form of opposition and put them in prison and kill them off – in the name of national unity. Reports have come out of defecting revolutionary guards that the leadership has several scenarios planned to foment this sort of trouble. One of those scenarios was to unleash the missiles they've supplied to Hezbollah on Israel. Now if Israel retaliates against Iran, there is that fall back option again.

Same thing in Iraq. Iran could use a US-Iraq war as a platform to cause trouble and to encourage America to come and take military action in Iran, which would be disastrous. Imagine: the Americans are in Iraq. People from Ayatollah Hakim's Supreme Council for the Islamic Revolution in Iraq are going around blowing up American soldiers. America, which has stated that they will not only strike against terrorists themselves but their supporters, will have no choice but to come and strike against the Islamic republic, thus allowing the Iranian government to say that they're under attack and that anyone protesting against them is a traitor against the nation.

Give us a realistic scenario of ways that Iran could create secular democracy, get rid of the clerical authority, and actively go about changing their futures. What role could America have in the process?

Iran should work its way toward al-

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lowing participation by all Iranians, whatever their stripe and color. I believe there is a straight path towards that, through a national referendum. I think that that will ultimately come about through pressuring the system, through convincing the system that it will not survive, that it is not viable if it doesn't give way to people's demands to holding a referendum. Non-violent opposition is one way—what the students have been doing but on a grander scale. Up until now it's been limited to thousands; it has to reach the critical sphere of millions. What can the United States do in the mean time? To sit on the sidelines and say nothing about Iranian policies that are destructive is essentially endorsing them. So I don't believe in sitting on the sidelines. Yet, I don't believe in military or covert intervention of the style that we're used to in the past. The United States, as well as Western Europe, can become incredible moral supporters of Iran. What do I mean by moral? Meaning that we continue to make statements like we've heard in the last State of the Union address, where the president said that he recognizes the plight of the Iranian people and that he hears them and supports them morally.

To sit on the sidelines and say nothing about Iranian policies that are destructive is essentially endorsing them.

[We ought] not cut deals with the regime in the way the European oil companies have been cutting deals with the Islamic republic. This is a country that executes scores of people bimonthly for drug charges (we don't know how many of them are political charges), puts people in prison for political reasons and is not on a U.N. watch list for human rights. Why? Because the Europeans want to cut deals with them, want to make a buck out of these guys' last surviving days.

The third way that the United States can bring about change is by strengthening Iranian nongovernmental organizations. President Bush's administration has been very good at articulating that it will bypass the Iranian government and go to the Iranian people themselves. But they've been very vague about how they are going to do this. What the United States can do is financially support NGOs, financially support women's groups, financially support groups that work for run-away teens to help them, that work with addiction in Iran. Funnel a lot of money to them and facilitate their coming to the United States to be exposed to our democratic system. Teach them systems of democratic management, of leadership. One of the main problems with all of these groups is that they lack the know-how of democratic functioning. There are still the remnants of totalitarianism even at this level in Iran, where the leader wants to take all. These groups have to become better acquainted with the democratic system. By doing that, the returns might not be immediate, but will become visible in the long haul, in a year or two years. As people go back, they not only help Iran socially, by helping addiction, by helping the health and welfare of Iranians, but also they will transfer this democratic know-how to the Iranian people. And, more than that, they will learn how to become proponents for the rights of Iranian people. ♦

THE ISLAMIC REPUBLIC AT 24

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Growing Tensions and a Doomed Regime

by Shannon O'Pray

Twenty-four years of radical and oppressive governance have shattered the Iranian peoples' hope for democracy and social justice throughout the Islamic Republic. In 1979, students stormed through Tehran burning American flags, but today the same section of the populace threatens the continuity of the regime. Amidst the drumbeats of change, Iran has reached its most serious political crisis since the Revolution, as a young population realizes the failings and limits of the Islamic Republic and agitates for a more secular democracy. Government by the "reformers" has fallen short of the Revolution's ideals, leaving control of the population to the hard-line clerical council. Iranians have concluded that the entrenched regime in Tehran, not America, deserves the blame for their nonexistent freedoms, economic instability, and discontent. Iran stands at a crossroads and its paramount geopolitical importance places even greater significance on the outcome of the current crisis.

However, this unrest in Iran has largely gone unnoticed in the West. As the United States continues its war on terrorism and attempts to stabilize the Middle East, a strategy of supporting pro-democracy movements could assist a successful transition to a democratic Iran. Rejection of the government by the people would demonstrate to the Middle East and the world that the first country to fall into the hands of radical Islamic governance failed miserably. To attempt the difficult task of repairing the West's relationship with Iran is to embark on a path toward the ultimate goal of Middle Eastern and global stability.

To understand the tenuous position of Iran's current government, one must look to the founding of the Republic and the roots of its immutability. After decades of corrupt rule under Shah Reza Pahlavi, the Ayatollah Khomeini and his fellow radical clerics rose to power on a surge of popular support and an intensely anti-western political platform. The principle of *Velayat-i-faqih*, or Governorship of the Jurist, delegates ultimate authority to the Supreme Leader, meaning Iran is a "republic" in name only. The Supreme Leader selects members of the Council of Guardians to approve and constrict decisions of the elected parliament, the Majilis.

After twenty-four years, rule under the Islamic Republic has lost its appeal. Decades of brutal repression of anti-regime factions have left Ayatollah Khamenei, Khomeini's chosen successor, with no scapegoat for his government's shortcomings and unfulfilled promises. In 1979, Iranians lived widely dispersed in the countryside. Today residents concentrate in cities, where rampant unemployment and pollution abound. By eliminating its rivals, each successive government abandoned the ability to spread the blame for its own failings. Furthermore, 65 percent of Iran's 70 million people are under the age of 25, meaning the Islamic Republic is the only government authority most Iranians have ever known.[1] For a government that bases its legitimacy on popular support, the growing unrest of young people who have been raised on a strict diet of revolutionary doctrine does not bode well for the future of the regime.

In 1996 and 2000 Iran elected a president, Mohammed Khatami, who campaigned on a platform of reform. Nevertheless, well into his second term the planned social and political reforms are nowhere to be found. Khatami's in-

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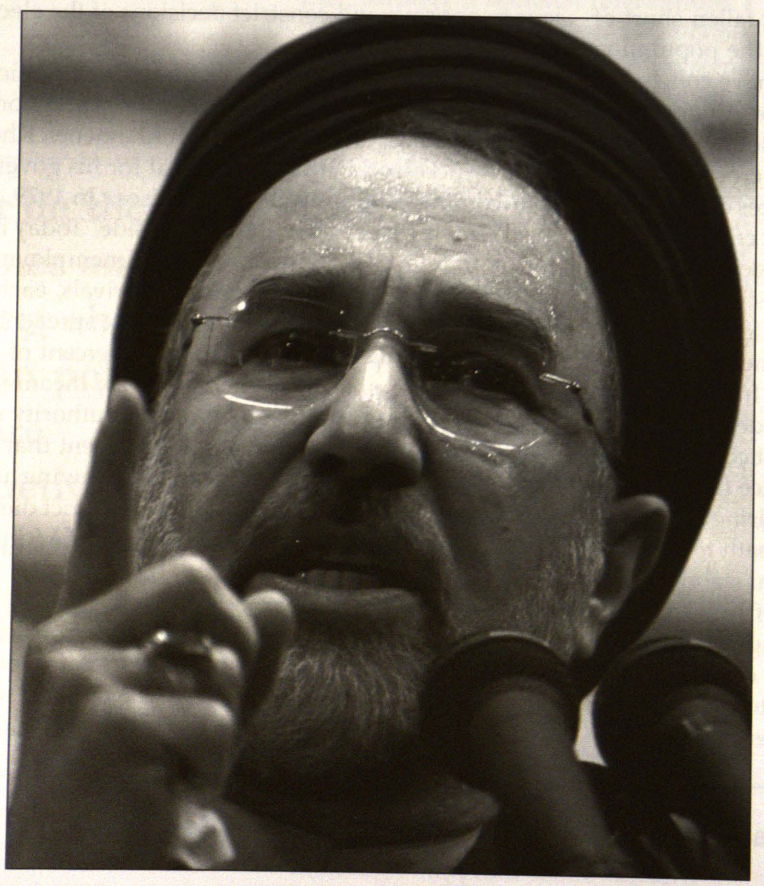
effectiveness results from his lack of executive powers and his refusal to credibly oppose the hard-line clerics. Iran's constitution delegates almost no power to the executive branch – the President is merely a puppet of the mullahs.

As a last gasp effort to achieve legitimacy in the eyes of the people, on August 28, 2002 Khatami introduced two bills into the Parliament. One bill would give Khatami authority to suspend judicial rulings if deemed unconstitutional – the other would remove the power of the clerics to approve candidates for elections.[2] A fatal flaw weakens Khatami's move: the Council of Guardians must approve of any legislation before it is passed, and they are unlikely to do so.

In 1999, the closure of a newspaper critical of the regime sparked massive demonstrations among the students of Tehran University. Security forces organized by the Revolutionary Guard, a military organization with close ties to the hard-liners, invaded dormitories and beat up students, injuring and imprisoning many and killing two. From the epicenter of Tehran University riots spread throughout the country and each year since 1999 students have held gatherings in commemoration. The July 2002 resignation of Ayatollah Taheri as the prayer leader of Isfahan inflamed the passions of student demonstrators who then crowded Tehran, Isfahan, and Qom in riots of a scale not seen in years.

Iran's National Security Council swiftly moved to ban the press from reporting "in favor or against" Taheri as protests spread. Instead of slogans of "Death to America," the protesters spewed anti-regime chants of "death to the Islamic Republic, the Taliban of Iran," "Referendum, referendum," and "Death to dictatorship."[3] Four months later they would take to the streets again in even greater numbers to protest the death sentence of a liberal history professor named Hashem Aghajari who had dared to question the supremacy of the clerics.



Few observers of Iran's current crisis expect the government to maintain the reins of absolute authority for much longer. Consequently, the United States and the West might be well served to rethink their relationship with Khatami and the unsuccessful reformers. By pursuing a strategy of isolating the Tehran regime and fostering a relationship with Iranian exiles in the West and dissidents within Iran, the U.S. could enable itself to play a peripheral, yet important role in assisting the development of a secular democracy. Ever increasing popular dissatisfaction with the hard-line clerical government plants the seeds of discontent in Iran – ideological and financial support will provide Iranians with confidence to continue their pro-democracy agitation.

In Tehran's government-sponsored poll of 1500 Iranians conducted in July 2002, 75 percent favored opening talks with America. Perhaps more importantly, 46 percent also viewed American policy toward Iran with approval. This statistic seemingly invalidates claims that President Bush's inclusion of Iran in the "axis of evil" hardened anti-American sentiment among the people of Iran.[4] However, recent American policy of "constructive dialogue" with Khatami and the "reformers" has resulted in too few improvements in the relationship. Khamenei and the mullahs refuse to loosen their strangle-

hold on the nation in spite of reformers' initiatives, making continuation of this dialogue pointless.

Before the Islamic Revolution, large numbers of Iranian students studied at American universities – many of those students remained in the West upon victory of the revolutionaries. Arguably, Iranian opposition groups in Iran and in the United States could provide the necessary foundation for the development of a truly democratic system in Iran. The combination of Iranian emigrants' experiences in legitimate democracies and current protesters' hunger for democracy creates the possibility of a viable replacement to the mullahs' regime.

To conduct a war on terrorism many have discussed the need for the United States to win the battle of ideas in the Middle East. In Iran, government polls and student democratic protests already demonstrate the connection between America and average Iranian people. While many parts of the Arab world celebrated the attacks of September 11 with cheers and parades, hundreds of residents of Tehran gathered in a candlelight vigil in support of America. Consequently, American policy rejecting Tehran's rhetoric and weak reform efforts and appealing to the demonstrators will only increase the standing of America in the eyes of Iran's population. In response to the July 2002 demonstrations, George W. Bush delivered a message directly to the Iranian people, and defined the failure of the "reformers," saying "... the vast majority of the Iranian people voted for political and economic reform. Yet their voices are not being listened to by the unelected people who are the real rulers of Iran." Inspiring immediate backlash from Khatami and Khamenei, Bush also declared, "The future of Iran will be decided by the people of Iran."[5]

After that July 12 address, American support for Iran received scant attention, with a few notable exceptions. Zalmay Khaliazad, National Security Council member and advisor to the President for Near East and South Asia, read the July 12 speech in Persian over the airwaves of Voice of America. He then directly criticized the regime in a speech to the pro-Islamic Republic American-Iranian Council, saying, "America will stand beside all people - including Iranians - who seek a freer future."[6] Clear American statements supporting true democracy in Iran could be the ideological support that the dissidents need.

George W. Bush's 2003 State of the Union address further clarified American policy toward Iran. He publicly committed the U.S. to the cause of the Iranian people, saying, "In Iran, we continue to see a government that represses its people, pursues weapons of mass destruction, and supports terror. We also see Iranian citizens risking intimidation and death as they speak out for liberty, human rights, and democracy. Iranians, like all people, have a right to choose their own government, and determine their own destiny — and the United States supports their aspirations to live in freedom."[7] American policy enforcing these principles and commitments may enable the U.S. to influence regime change in Iran through peaceful, indirect means.

Although Iraq and Al Qaeda may occupy today's headlines, Iran remains the preeminent state-sponsor of terrorism. For years, the hard-line clerics have "exported the revolution" by funding the Lebanese Hezbollah, a terrorist organization responsible for numerous bombings and assassinations including the 1983 bombing of the U.S. Marine barracks in Beirut. Iranian financial support of Hezbollah enables the organization to pursue ambitious civilian infrastructure projects, such as the construction of hospitals and schools all over the Arab world. Through "humanitarian" projects the mullahs in Iran build an external power base and position of preeminence in the Arab world, one which ultimately may increase their staying power.

Perhaps the most important variable in the future of Iran is the possibility of regime change in Iraq by a coalition of western forces. Assuming the U.S. and Great Britain successfully remove Saddam Hussein from power, a pro-western government or peacekeeping force will likely remain. Only hostility between the regimes of Baghdad and Tehran separate the

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shared culture and religious practices of Iraq and Iran. With Saddam Hussein's border patrols gone, the long, porous border will naturally lead to increased interaction through the flow of people and ideas. Furthermore, Afghanistan's pro-Western government lies on Iran's eastern, also porous border. Current clerical hold on Iran is at best tenuous – the regime will be unable to resist the influx of democratic ideals and western influence.

If internal regime change occurs in Iran, no one knows whether the transition will be relatively non-violent, or whether it will immediately bring secular democracy. In one worst-case scenario, the mullahs could vow to hold out until the very end and anchor themselves to a drowning regime. Though created as a professional military organization, the Revolutionary Guards consider themselves to be a revolutionary political group, and if significant numbers of soldiers cannot be enticed to desert the crumbling regime, extreme violence could ensue.

In many ways, Iran's present situation resembles the final days of the Soviet Union.

Iran experienced a nationwide revolution in 1979 and has no desire to repeat the bloodshed. However, the refusal of one corps of Revolutionary Guards to arrest students in the July 2002 protests indicates that not all factions of the Guards remain loyal to the regime.[8] In 1981 the mullahs instigated the Iran-Iraq war to unite the country and distract the people from the government's abuses. If the U.S. occupies Iraq and the mullahs incite Shi'ite militias to attack U.S. interests, resulting American military retribution could in fact lengthen the regime's staying power. Though the variables are many and the certainties few, as time passes more observers of the situation in Iran concede that the failure of the regime is inevitable.

In many ways, Iran's present situation resembles the final days of the Soviet Union. After the fall of East Germany, Gorbachev opted against sending troops into Eastern Europe again, realizing the tide had turned against him. In Eastern Europe, the people anxiously awaited the signs that the Kremlin lacked the will to crack down once more, and their assurance came with Gorbachev's concession to the inevitable. At what point will the hardliners of Iran realize that yet another crackdown will do no good? Conceivably, American strategy of isolating the Tehran regime and supporting dissident movements could effectively contribute to the transition from repressive clerical government to secular democracy. ♦

[1] "Students demand 'freedom in general,'" *The Irish Times*, 3 January 2003

[2] "Iran's President Trying to Limit Power of Clergy," *New York Times* 29 August 2002: internet version

[3] "Death to Dictators," *The New York Times* 15 December 2002: 15

[4] "Drilling for Freedom," *The New York Times* 20 October 2002: 11

[5] George W. Bush, 12 July 2002

[6] Kenneth Timmerman, "The Truth About Iran," *Insight* November 2002

[7] State of the Union Address, 28 January 2003

[8] "The State Department Goes Mute," *National Review Online*, July 11, 2002

THE INHERITANCE OF THE REVOLUTION

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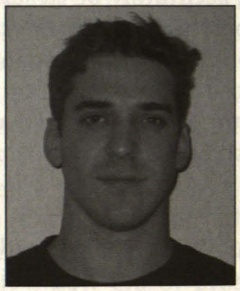
Shi'ism and the Signs of Progress

by Tyler Golson



Ask the average American what images are conjured up when he thinks of Iran. He will most likely tell you about an American flag burning, an embassy full of U.S. civilians held captive, or perhaps the stern turbaned figure of Ayatollah Khomeini, glaring down from a poster held aloft by a screaming youth in a raucous crowd.

And why not? Given that America's relationship with post-revolutionary Iran has been contentious at best, it is no wonder that policy makers end up reinforcing an inaccurate and overridingly negative attitude towards the nation and its people—the most recent example being President Bush's inclusion of Iran in the "axis of evil" alongside North Korea and Iraq. Ever since its inception in 1979, the message that Americans have been receiving about the Islamic Republic of Iran is that it is just another Arab nation in the hopelessly backward Middle East, inflamed by a hatred of America and inextricably united with fundamentalist terrorists in their struggle against the West. This conception is far from the truth.

It is difficult for a nation in mourning to look beyond the past misdeeds of another nation and soberly differentiate between real enemies and potential allies. Yet this is precisely what we must begin to do if we are truly to support democracy in Iran and reconcile the country with the rest of the world. There are many signs that Iran is already on the road to recovery from its current political and economic crises, and our identification and recognition of these signs should go a long way towards turning around not just Iran, but its neighbors as well.

In short, to better understand the nature of the Iranian regime and facilitate its reform under modern democratic principles, it is necessary to reevaluate the popular conception of Iran and take into account three key distinctions: one, Iran is not an "Arab" nation; two, Iran is not united with the fundamentalists in their hatred of America; and three, Iran is not hopelessly backward.

Centuries before the Prophet Muhammad arose to warn the pagans of Mecca about the newly revealed word of God, Iranians were at the helm of a civilization whose economic, cultural, and military strength were unequaled in the world. The Persian Empire (from which the word *Farsi*, the name of the language of modern Iran, is derived) was consolidated by Cyrus the Great in 550 B.C. and extended East to the Indus river and West as far as Egypt by the end of the 6th century B.C. The Persians were the great rivals of Rome and Greece, Byzantium and the Ottomans, and they developed their own unique crafts, religion, and political systems, which had formative influences on all of Western civilization. When the armies of Islam finally did emerge from the desert expanse of Arabia and turned their sights eastward, Persian culture was already a thousand years old.

Unlike many of the desert or rural peoples encountered by the Muslims and assimilated into their community, the Persians already had a dominant and comprehensive religious identity in Zoroastrianism, and many were unwilling to convert even outwardly. It is a

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clear testament to the strength and appeal of Persian culture that Islam, a faith forged from grit and determination among the dunes of Arabia, was fundamentally transformed by its incursion into Persia. Local Zoroastrian, Buddhist, Jewish and Pagan ideas soon mingled with those of the still largely-unformed Muslim ideology to spawn a new approach to Islam, a mystical order out of which some of the most sublime literature and influential religious figures ever known would come—Sufism. The Sufi orders were characterized by an intense devotion to attaining personal connection with God, and their ranks still attract large numbers of Muslims and non-Muslims alike for their openness and piety. Historically, most of the great Sufi masters and schools of Sufi thought have come out of Persia, but there were Persian Sufi practitioners as far away as Spain and Southern France during the reign of the Muslim Almohads.

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Within a few years of the Islamic conquest of Persia, the capitol of the new empire was relocated to Baghdad, not far from the traditional Persian capital of Ctesiphon. The influx of Persian literature, technology, and political ideas enriched the fledgling Muslim community, enabling it to attract ever more converts and to support its growing empire. In the coming centuries, Persia (and later Spain) would be *the* center of gravity for Islamic intellectuals, theologians, and philosophers, some of whose work has had a formative influence on Western thought (Al-Farabi, Al-Ghazali, etc.)

All of this is to say one thing: Iran is not an Arab country. The term "Arab" originally referred to the Semitic peoples of the Arabian Peninsula, but has come to mean more generally those people whose primary language is Arabic. Unlike most of the Middle East, Iran has never adopted Arabic as its primary language. Nor has it ever embraced "Arab" culture aside from that which is indistinguishable from Islam. For all of the reasons mentioned above, Iran cannot accurately be described as an Arab society. Its history, culture, and sense of identity are in many ways closer to those of Europe or South Asia than they are to traditional Arab nations such as Saudi Arabia, Yemen, or Egypt.

Sufism is not the only Islamic ideology to have its roots in Iran. Approximately 90 percent of Iranians today are of the Shi'is Islamic faith—a fact that further alienates Iran from the rest of the (Arab) Middle East. Along with the tiny Gulf nation of Bahrain, Iran is the only nation in the world to have a majority Shi'is population.

Shi'ism is an alternate sect of Islam, comparable to Protestantism in Christianity, which is distinguished from its orthodox (Sunni) counterpart by a complex set of traditions hardened by centuries of oppression. The Shi'ites trace their origins back to the opposition party (*shi'a*) of Mohammed's cousin Ali, who broke with the Islamic community in 632 A.D. over the "illegitimate" ascension of the Umayyads to the Caliphate. As the cousin and son-in-law of the Prophet, Ali claimed that Mohammed had selected him as his successor, a fact contested by the more powerful Umayyads who elected one of their own as the first Caliph. The pivotal event in Shi'is history came when Ali's son Hussein was killed by the forces of the Umayyads along with most of his family[1] in the city of Karbala. To this day, Shi'ites celebrate the martyrdom of Hussein by massive demonstrations, often consisting of fasting and self-flagellation.

From this point on, the Shi'ites existed as a persecuted and marginalized

sect. They developed their own doctrines and traditions distinct from the Sunni orthodoxy, and stressed the importance of political quietism, communal perseverance, and above all, devotion to their religious leadership. Chief among the Shi'is leaders is the Imam—a word which for Sunnis refers simply to the man who stands in front of the congregation and leads the prayer, but for Shi'ites represents the supreme social and spiritual leader of all Muslims. Since the late 7th century, the Shi'ites have believed that the one true Imam has continuously existed on earth but has retreated into hiding in order to avoid the Sunni authorities. Shi'is tradition holds that the Imam issues orders to his community, guiding their conduct and overseeing all matters in society, through a mystical connection with key religious leaders among the Shi'ites. On the day of judgment, the Imam is to return from occultation and usher in a new era of prosperity and piety.

Since the Shi'ites recognize no Sunni Caliph as their supreme religious and political leader, and since their own Imam is presumed to be in hiding and absent from daily life, the Shi'ites have traditionally relied upon personal judgment and individual interpretation (*ijtihad*) of the Koran to determine both social and spiritual norms. This crucial element of Shi'ite theology requires that religious leaders, the *ulema*, constantly reexamine the tenets of Islam in accordance with the contemporary needs of their community, and necessitates the periodic reformulation of Shi'is practice in the hopes of bringing about the swift return of the hidden Imam.

The implications of this central characteristic of Shi'ism are far reaching. For one thing, it can be said that Shi'ites are generally a "forward-looking" people, as opposed to the "backward-looking" orthodox Sunnis (and certainly the fundamentalists.) Instead of glorifying the past golden age of the first four righteous Caliphs, Shi'ites concentrate their efforts on the future, on progress, and on continually improving their lives to the point where the Imam will be compelled to return. Furthermore, the Shi'is clerics are charged with the task of individual interpretation of established religious tenets, allowing them leniency in the way they view Islam, whereas their Sunni counterparts are bound by ancient perspectives and prohibited from committing the sin of innovation (*bid'a*) since the "door to *ijtihad* is closed."

These central tenets of Shi'ism drive a tremendous wedge between Iran and the entire rest of the Muslim world. By definition, the religious innovation and anti-establishment fervor promoted by Shi'ism are in direct violation of the central creed of Sunni orthodoxy. And while it can be argued that Shi'ites share a common zeal for Islamic reform with fundamentalist groups such as Al Qaeda, the Muslim Brotherhood, or Islamic Jihad, their cooperation with many of these groups is precluded by an extreme divergence in dogma concerning the model for Islamic reform. As was mentioned earlier, the fundamentalists want things to return to the way they were (hypothetically) in 632, whereas the Shi'ites do not have a past precedent for their ideal society and instead seek to actively create a bold new future. On religious grounds, the fundamentalists and the Shi'ites of Iran could not be more dissimilar.

An additional fallacy is to assume that Iranians today hate America. A recent poll conducted by the Iranian government found that most Iranians favored diplomatic reconciliation with America.[2] It is certainly true that the official government rhetoric is exceedingly anti-American (the slogan "Death to America" is still a part of the daily national prayer), and one cannot read any government-sponsored newspaper without coming across several bitter references to America, but the masses of youth who fill the universities never knew life under the Shah—they never knew the Revolutionary fervor that swept up their parents and grandparents and effectively cast off the influence of Cold War America. These "children and grandchildren of the Revolution" increasingly see America not as the "Great Satan", but as a "Fortune Land" where anything is possible.[3] It is interesting to note that all of the terrorists involved in the 9/11 attacks

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A CONVERSATION WITH PROFESSOR DAVID MENASHRI

David Menashri is Professor at the Department of Middle Eastern and African History and Senior Research Fellow at the Moshe Dayan Center in Tel Aviv University. Professor Menashri has been a visiting Fulbright scholar at both Princeton University and Cornell University and, among others, a visiting scholar at the University of Chicago, Melbourne University, the University of Munich and Waseda University (Tokyo). In the late 1970s he spent two years conducting research and field studies in Iranian universities on the eve of the Islamic Revolution, supported by the Ford Foundation.

David Menashri has written seven major books about post-revolutionary Iran, including his most recent, "Post-Revolutionary Politics in Iran: Religion, Society and Power", which was awarded the Tzhezhik annual prize by the Jaffee Center for Strategic Studies in 2000. He has also edited several books and written numerous articles for magazines and publications in Israel and abroad.

On a speaking tour that included Harvard, Tufts, Cornell, Columbia, and others, he visited Yale and sat down to speak with The Politic *on February 3.*

Politic: What effect will a war on Iraq have on U.S.-Iranian relations? Would it strengthen the clerical hold on the country or do you think it would provide reformers with an opportunity to mobilize?

Menashri:Iran is now celebrating 24 years of Islamic republic. It has been so far fairly successful in stabilizing the regime. It has been less successful in implementing its ideology and removing the problems that lead to the revolution in the first place. The relations with the United States were very tense from the first days of the revolution, although there have been some signs of change in the last five, six years, mainly since Khatami became president in May '97. The question is not how Iran can influence the war, the question is how the war is going to influence Iran. There are two basic scenarios. One is where the Americans go in and the war is long and protracted. From the Iranian government's point of view, this is the most desirable scenario because it will incite the passions of the Muslim world against the United States. The worst scenario, or the best for the United States, is a swift American victory and that would strengthen the more reformist elements in the Iranian administration.

While it is true that many Iranians regard the United States as the Great Satan and go to the streets and shout, "Death to America, death to America," America for the last dozen years has done great services to the Iranian people. Twelve years ago the United States led a coalition of military powers against Iraq, which was in the Iranian national interest because Iraq was their main enemy. Last year America went to Afghanistan and removed the Taliban, another enemy of Iran from the east. Now it's going against Iraq again. The Americans may serve Iranian interests, but the Iranians would never applaud the United States for doing so.

When President Khatami came to power in '97, there were great hopes about what kind of internal reform he was going to initiate. A lot of critics today are saying that Khatami is simply a conservative in reformists' clothing, that he's just as much of a tool of the clerical administration as any of his forbearers. Do you agree?

Well, I give more credit to Khatami as a leader who means to make reform. I doubt his power to do so. Khatami has had six years now to make good on his promises, and if he has not done so yet, what guarantee is there that he will do so in the next two years? You must understand that Khatami was not elected to destroy the revolution. Khatami was elected to save the revolution. So he's part of the system.

In Iran, the president is only a president. He's not the head of state. Constitutionally and practically, Khatami does not get the power to implement considerable change in the country. In each and every case that Khatami confronted the conservatives, he had to withdraw. Three years ago, there were student dem-

September, 1980

Saddam Hussein declares that he will no longer recognize Iranian control over parts of the Shatt al Arab waterway, a strategic navigational hub dividing the two countries.
In a surprise attack on September 22, Saddam launches attacks on major Iranian air bases and drives its army into Iranian territory from three different fronts.

November, 1980

Iraq's offensive succeeds in capturing the Shatt al Arab and an additional forty-eight-kilometer-wide strip of Iranian territory, but Iran rapidly mobilizes its professional army and launches a counter offensive buttressed by fervent popular support.

1981 - 1982

Iran drives Saddam's forces o of Iranian territory in series protracted skirmishes..

onstrations in Tehran and one of the banners of the students was "Khatami, Khatami, where are you?" Khatami disappeared! He did not give a speech for over two weeks, so the "leader of the reformists" abandoned his movement. Khatami is not the leader of the reform movement. Khatami, in my view, is the *result* of the reform movement.

I think that Americans and the Iranians are both looking for ways to speak with each other. Unfortunately, they don't find a common language to understand each other. Since Khatami's election in '97, we've seen a kind of slow-motion, ping-pong diplomacy. Khatami makes a statement and the Americans respond, but this does not lead to any significant results. Iran is a country whose people are not so much against America. The government is very anti-American, officially. But I'm not sure that the people are similarly anti-American. Its typical for the Middle East—in many countries in which the government is pro-American, the people are against America; and when the leadership is anti-American, you usually find the people a bit more pro-Western.

Given that Iran's population has nearly doubled in the last 20 years, with 70 percent under the age of the 30, what implications do you think this has on the possibility of democratic reform in Iran?

The people in Iran are young, and I think that this holds great hope for the future. Because when you think about the Iranian people, most were not born long before the Revolution. This is a generation that didn't know the shah. They don't have a personal memory of the previous regime. And therefore what they demand and what they want to see is practical improvement of life. Not dogma. And this has not yet materialized. I think as we approach the 25th anniversary of the Islamic revolution, the main test for the regime is how to ease the lives of the young generation—providing them employment, blocking inflation, and facilitating other services that people want. They want a good life just like us!

But in front of the young generation you see the conservative elite who claim to speak in the name of Islam, who have the backing of the military forces, and who have the determination to fight for their cause. So we have a general struggle between these two tendencies, with the conservatives normally winning out and crushing dissent.

I think that the picture that I would draw from this situation is summed up in the writings of a young Iranian student four or five years ago. Ayatollah Khamenei wrote an article in one of the leading newspapers warning the young generation not to "cross certain lines" in terms of its protests and agitations on the road to an immoral democracy. A week later the student answered Khamenei's editorial with one of his own, insisting that the problem is not that young people are crossing certain undefined lines, but that the conservative clerics are driving the wrong direction on a one-way street. So ultimately, in the long run, the young generation will win, but in the short run, I don't know.

Of course, there are some signs of openness in Iran that we cannot find in other countries of the Middle East - the number of newspapers being published in Iran, the relative freedom of expression that we can find in Iran. But then, some 70 newspapers were shut down in the last three years and many editors were put in jail. So there is no *one* voice coming out of Iran. The situation is much more complex and I think that a lot depends on the result of the impending U.S.-Iraq war. If the war is won swiftly and decisively by the Americans, this may be a new beginning for the more moderate voices who seek to strengthen reforms.

From the Iranians' point of view, however, the war may lead to the total disintegration of Iranian sovereignty and the establishment of independent entities, for example, a Kurdish state on its Western border. It is ironic to note that Turkey, Iran, and Iraq disagree with each other on so many different issues, but there is one issue that they all agree on—they are against the formation of an independent Kurdish state.

Many commentators have spoken out about the need to export democracy to Iraq, thereby avoiding the pitfalls associated with the installation of a puppet regime. Do you believe that a democratic system could work Iraq?

I don't see any reason why not. Iraq has the potential to become a more open and liberal state, provided that freedom is being allowed. Right now, unfortunately, we don't see in the Middle East in general much openness and freedom, and I am not sure that a liberal system can be exported so easily from one culture to another culture, from one country to another country, as much as Islamic revolution could not be exported from one country to another country. Each state has its own dynamic history and traditions and political systems, and these should fit into the realities of the given societies. ♦

July, 1982
Saddam Hussein, his forces driven back to pre-1979 borders, offers a truce. Iran rejects Saddam's peace overture and invades Iraqi territory.

1982 - 1988
Iraq loses 375,000, and Iran adds 300,000 to the death toll, each side making irrelevant advances and counter-strikes along the border. Iran is cited by International Human Rights organizations for its use of "human waves" of poorly-trained adolescents as shields for the Iranian army. In between 1984-87, Saddam utilizes chemical and biological weaponry largely funded by the United States against Iran.

August, 1988
Iran accepts United Nations Security Council Resolution 598, leading to a 20 August 1988 cease-fire.

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were born in countries supported economically by America (i.e. Saudi Arabia and Egypt.) Iran, on the other hand, has been utterly cut off from the US for twenty-four years, and so it follows that most of its populace bears no illusions about America being to blame for their plight.

Thus, Iran remains at odds with the rest of the Middle East on the issues of faith and relationship to America.

Iranians have demonstrated a tendency of free-thinking and innovation that has kept them at the forefront of Middle Eastern civilization since the days of Cyrus the Great.

Iran was the first country in the Middle East to initiate a Western-style constitutional revolution. In 1905-6, key leaders among the intelligentsia, the merchant class, and the clergy united in calling for the disempowerment of the Qajar Shah and the installation of an elected legislature. The attempt failed miserably and the provisional "Parliament" was dissolved within a few short years, but the memory of this momentous event no doubt influenced both the method and rhetoric used in the Islamic revolution sixty-three years later. Indeed, there are some striking similarities between the revolution of 1905-6 and the overthrow of the Shah 73 years later.[4] First of all, both were led by a vanguard of the intelligentsia, merchant, and clerical classes. Secondly, both were made possible by a remarkable degree of popular support, facilitated by the interconnectedness of very different social classes.

An interesting and seemingly inexplicable factor in both revolutions was the solidarity shown among virtually all sectors of the Iranian populace. Unlike the French or Soviet Revolutions, the modern Iranian revolutions have been supported by rich and poor, young and old, conservative and liberal alike. One possible explanation for this surprising unity among Iranians is their deeply-ingrained shared sense of history, going back to the Persian Empire and the first days of Shi'ism. Iran has always existed as a separate, unique entity: in between East and West, accepted by neither Christians nor Orthodox Muslims, stubbornly retaining an esoteric language. There appears to be an imperceptible but unbreakable bond among Iranians, hardened by centuries of alienation and intermittent periods of glory.

Beyond ethnic solidarity, Iranians have demonstrated a tendency of free-thinking and innovation that has kept them at the forefront of Middle Eastern civilization since the days of Cyrus the Great. Part of this spirit of progress can be attributed to Shi'ism and its ideological encouragement of religious reform. Before Ayatollah Khomeini used his immense popularity and unassailable authority to claim the right of final judgment in matters of religion, Shi'ites were openly encouraged to question the tenets of Islam and reinter-

pret them according to present circumstances. That is not to say that Shi'ites no longer believe in the idea of *ijtihad*, which they certainly do, but they are no longer permitted to challenge the rulings of the supreme clerics in public and must suppress their doubts at all times. Yet it is clear that the spirit of *ijtihad* never was, and never will be, completely contained. Before Ayatollah Khomeini came onto the scene, there were dozens of other eminent religious thinkers calling for major reforms and the overthrow of the Shah. Dr. Ali Shariati, for example, had an alternate vision for the revolution based on social justice and egalitarian ideals, in which the clergy would serve only in an advisory capacity. Going further back to1952, Iranians elected as prime minister a nationalist secular leader named Mossadeq who refused to cooperate with British and American interests and nationalized the Anglo-Iranian oil company for the benefit of his people. This short-lived experiment in popular nationalism was forcefully ended by the United States in a bloody coup d'etat, but the Iranian people's spirit was never broken and they continued to fight for reform up to 1979.

And it is clear that this determination to make change has been passed down to the children of the revolution, even in an environment where dissidence is harshly restricted. One needs only look at the headlines of any Iranian newspaper to know that the Iranian spirit of restlessness and indomitable tenacity is alive and well, and making a great effort for progress.

In 1997, the moderate reformist candidate Mohammed Khatami was elected to the office of the presidency, which, though still subservient and ultimately responsible to the clerical authorities, has taken on an increasingly important role in the administration of daily politics. Freedoms of the press and association have been expanding markedly in the past few years with international conferences and Internet access paving the way for healthy dialogue.

Perhaps the clearest indication that Iran's progressive nature is hard at work is the rising frequency of popular protests in Iran's big cities. Hardly a week goes by that there isn't a major demonstration of university students and intellectuals in the streets of Tehran or Qom. The methods used and the sentiments expressed remain basically unchanged since the summer of 1979, but today, instead of shouting slogans like "Death to America", they are saying "Death to Dictatorship."[5]

Compounding the efficacy of these popular protests is the emergence of the Iranian parliament, which has begun to take an active role in reforming the nation. Just recently, a petition signed by all 100 members of the Iranian parliament succeeded in convincing the clerical authority to release a chief religious dissident, Grand Ayatollah Hossein Ali Montazeri, from house arrest in Qom. Analysts and journalists have called the move "a score for the reformists."[6]

The signs are clear; Iran's experiment with theocratic totalitarianism is nearing completion. Many analysts predict that a potential American war with Iraq will cause upheaval in the Middle East, pushing reformers further underground and providing authoritarian regimes the opportunity to crack down on the opposition. In the case of Iran, it seems as though the people are simply too stubborn, too savvy and too determined to be turned away from the fight for change. War or no war, Iran has always been a nation of strong-minded, uniquely gifted individuals who aren't afraid to stir things up and take a chance on a new idea. This crucial element of Iranian identity is truly distinct among Middle Eastern peoples, and it could engender a harmonious relationship between Iran and the United States in the future. After all, America once believed in revolution too. ♦

The signs are clear; Iran's experiment with theocratic totalitarianism is nearing completion.

[1] According to Shi'is legend, one member of Hussein's family survived the attack at Karbala and lived on to become the first hidden Imam

[2] See Shannon O'Pray's piece in this same section

[3] Elaine Sciolino, "Iran Veers Between Admiration and Resentment of American Power", *The New York Times*, January 30, 2003

[4] See Mehdi Moslem's report on the 1905 Revolution at http://www.ciaonet.org/wps/mom01/

[5] Tom Friedman, "Death to Dictators", *The New York Times*, December 15 2002

[6] Reuters, January 29: http://abcnews.go.com/wire/World/reuters20030129_465.html

SENSELESS HOSTILITY

• • •

Why the United States Opposes the International Criminal Court

by David Marcus

The United States has steadfastly opposed the creation of a permanent international criminal tribunal since the moment the statute for the International Criminal Court was completed. At the July 1998 conference that created the statute, the United States, along with strange bedfellows such as North Korea, Iraq, and Iran, was one of seven participants refusing to sign it.

Bill Clinton reluctantly added the signature of the United States in the waning moments of his presidency, an act that then-Senator Jesse Helms maligned as an "unprecedented assault on American sovereignty." On May 6, 2002, the Bush administration notified the United Nations that the United States would undo its predecessor's handiwork and withdraw the signature. Recently, American opposition to the ICC has shifted from this obstinate aloofness to a more aggressive hostility. The Bush administration's refusal to cooperate with the most promising attempt to create international accountability for the world's worst felons since Nuremberg fosters unnecessary and senseless antagonism abroad that stymies efforts to win support for American foreign policy.

Last year, in addition to withdrawing the signature of the United States from the ICC statute, the Bush administration took three steps to insure that the ICC *founders upon the shoals* of American hostility. President Bush signed into law the American Servicemembers' Protection Act on August 1, 2002, prohibiting any governmental agency – federal, state, or local – from cooperating with the court. If an American is ever imprisoned pursuant to an ICC indictment, the Act authorizes the President to "use all means necessary and appropriate" to bring about that person's release. Second, last summer, the administration, with an eye towards winning total immunity for American military personnel, forced the United Nations to approve a resolution effectively authorizing the Security Council to block ICC jurisdiction over peacekeeping operations. Finally, in recent months, the administration has pressured almost all the governments of the world to sign agreements ensuring that no American will ever be handed over to the court. Exploiting its immense power, the United States has compelled countries like East Timor, which noted its "fragile state of existence" and its "uniquely vulnerable position" when acquiescing to American demands, into agreements they would otherwise refuse.

The ICC will have jurisdiction over crimes of genocide, war crimes, and crimes against humanity. It is part of an arguably quixotic but nonetheless noble effort to tame armed conflict, civil war, and other humanitarian disasters with the rule of law. Why has the United States, the birthplace of modern democracy and the possessor of one of the world's oldest and most effective codes of human rights, opposed so vigorously this institution that is rooted in American ideals of the rule of law and inalienable rights?

The reasons offered by the ICC's diehard detractors are easily discounted as pretextual. First, opponents of the court point out that Americans subject to ICC prosecution will not enjoy certain due process rights, most importantly the right to a jury trial, guaranteed by the Constitution. This rationale is a shibboleth, since currently American military personnel are not guaranteed a jury trial for crimes they commit abroad. Under the NATO Status of Forces Agreement, for example, American soldiers who commit crimes on German soil may find themselves on trial in the German criminal justice system, which does not use juries.

Second, ICC opponents, fueled by real and paranoid perceptions of global anti-Americanism and claiming that the ICC will be the stooge of a European leftist cabal, raise the spectre of politically-motivated prosecutions of prominent

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Americans. This concern makes for good political hay but is baseless. Jurisdictional barriers codified in the ICC statute will prevent frivolous prosecutions. The ICC's jurisdiction is governed by the principle of complementarity, which requires the ICC to defer to a national court's jurisdiction and allows it to prosecute someone only if the national court is unwilling or unable to undertake a criminal investigation. Provided that a government legitimately investigates allegations of its citizen's culpability for grave human rights violations, the ICC cannot indict him. Given the confidence the rest of the world places in the American judiciary, the possibility that the ICC will label the United States unable to prosecute is remote.

In situations where the United States is genuinely unwilling to investigate an alleged war criminal, as might be the case if an American president is accused of serious misconduct, the rules of power politics will prevent the ICC from taking any meaningful action. International justice plays by the same rules of realpolitik that govern other arenas of international relations. As was evidenced during the Kosovo bombing campaign, American power is sufficient to put a stop to any efforts to investigate or charge powerful Americans for international crimes. In 1999, rumors from the Yugoslav War Crimes Tribunal, which possessed compulsory – not complementary – jurisdiction over all military actions in Kosovo, indicated that the court's chief prosecutor planned an investigation of NATO officials for possible war crimes. The United States reacted quickly, making clear that such an investigation would spell the end of the tribunal and American contributions to Balkan peacekeeping efforts. The tribunal blinked, releasing a report that absolved NATO and thereby the United States of any possible criminal liability. It is certain that the ICC will respond similarly to the realities of global power politics.

No practical reason for American antagonism to the ICC exists. Ultimately, this antipathy comes from the conviction, rooted more in ideology than reality, that the United States is somehow above international human rights scrutiny. Since its colonial forays at the end of the 19th century, the United States has occasionally discovered that the actions it takes in the international arena conflict with its vision of itself as the world's guarantor of democracy and freedom. When the vision conflicts with the reality, that is, when American foreign policy conflicts with international law, the United States often reacts by claiming that because its actions invariably increase democracy and liberty worldwide, it does not need to be bound by the same rules as other nations.

In this vein, the Bush administration is unable to accept that Americans can and do commit the sorts of heinous crimes proscribed by international law. Subjecting the United States to the ICC's jurisdiction would entail an admission that the United States, like all other nations, has the potential for tremendous misdeeds. The Bush administration will not recognize this possibility and prefers to believe in the Wilsonian myth of American exceptionalism.

The problem with this myth is easy to identify – the rest of the world does not buy it, and it only breeds distrust of American efforts to force other countries to play by the rules of international law and human rights. Recently the Bush administration has attempted to rally international support against Iraq by pointing to Saddam Hussein's dismal human rights record and his propensity for violating international law by invading sovereign states. Given the American refusal to cooperate with the ICC, it is not surprising that many around the world have viewed these rationales for military invasion as subterfuges disguising more self-interested motives.

Given that the ICC poses no costs to the United States in any practical sense, the Bush administration should drop its opposition, re-sign the court's statute, and send it to the Senate for ratification. A gesture such as this would win the administration a great deal of credibility among those countries crucial to the sort of coalition-building the United States must engage in to ensure that any future military action is successful. It would signal to a world tired of American moral superiority that the United States no longer views itself as above the rules it purports to espouse. Continued opposition, however, is harmful. The Bush administration is senselessly destroying vital political capital with its hostility to international criminal justice. ♦

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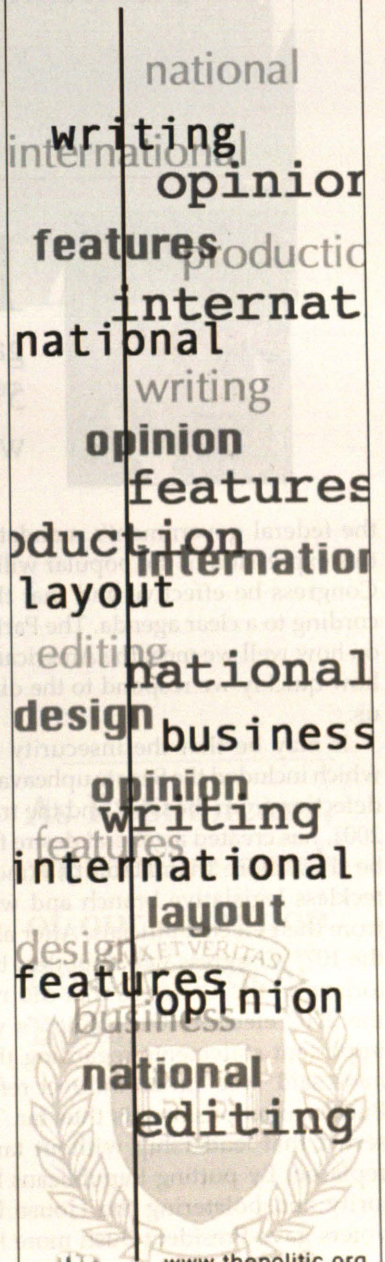

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A MANDATORY MISSION

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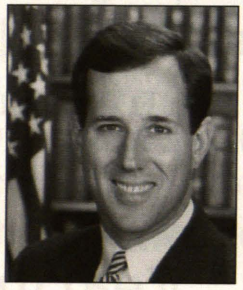
The Role of the GOP in the 108th Congress

by Rick Santorum



In 2002's momentous mid-term election, the Republican Party took control of the U.S. Senate and gained seats in the House for the first time. The November 5th returns signaled a new desire among the nation's voters, who, through their choices at the polls, have redefined the federal government's mandate. The GOP must read this expression of the popular will as a demand that their Congress be effective and that their lawmakers act according to a clear agenda. The Party's success will depend on how well we meet the American public's challenge and how quickly we respond to the directive they have given us.

It may be that the insecurity of the past two years, which included the Senate upheaval caused by Jim Jefford's defection from the GOP and the tragedy of September 11, 2001, has created a general desire for stability. It may also be that, more than stability, Americans have tired of a feckless legislative branch and wish to see more action from their elected officials. After all, the second session of the 107th Congress will doubtless be known to future historians as the Congress that did not. With the results of the 2002 election, the country's voters have made two important statements regarding their government. They have said "yes" in an indirect referendum on President Bush's accomplishments thus far. The public has also asserted that leadership without tangible results must be replaced. By putting Republicans back in the Senate majority and bolstering the House Republicans' position, voters gave President Bush more leverage with which to pursue his policy goals. Moreover, they have approved the agenda that we in Congress have been denied from undertaking because of the Democratic preference for partisan behavior.

The 2002 election was, in many ways, a vote for leadership. Americans wanted strong personalities among their federal officials, seeking those who are more determined to debate the important issues of our day than they are interested in procedural maneuvering. By most standards, a leader does not shy away from conversations on difficult topics, unless they are unprepared to participate or undecided in their views. A salient example of a lack of such leadership was Senator Tom Daschle's blanket refusal last year to allow the chamber to discuss the subject of human cloning while the Senate was under his control. The ethical dilemma of cloning, like that of abortion, is one of the most important moral questions our generation faces, and it deserves to be aired in the Senate. Defying explanation, Democrats used their power of majority to stifle debate and to slow progress. Disillusioned with this method of operating the Senate, the public chose to install leaders from a party that presents an unambiguous agenda for issues it will tackle.

This session, congressional Republicans, in concordance with President Bush, have been focused on defining party-wide goals and delineating a path by which to reach them. The result is a unified message addressing the nation's security concerns and maintaining the values of "compassionate conservatism." The GOP mantra was galvanized over the campaign season as high-profile party incumbents stumped with candidates from Minnesota to Georgia. Despite regional politics, differences in age, congressional experience, and professional background, Republicans cohesively supported one vision as a team. We delivered an alternative that spoke plainly and directly to Americans and their needs. We had greater success than

Rick Santorum has been United States Senator from Pennsylvania since January 1995. As the Senate Republican Conference Chairman, he is the third ranking Republican in the Senate.

our opposition in leading the ideological battle during the election because of our clarity in communication. Now we have an obligation to serve and lead the public politically according to these same principles.

There are initiatives, for example, that we began in the last Congress and will continue to champion with greater resolve and the confidence of majority leadership this year. Faith-based legislation, welfare reform, and incentives to spur community renewal are all concrete elements of compassionate policy-making. They illustrate a Republican commitment to leading through action and accomplishment, looking to solve social problems by providing people with real tools for improvement. Those tools can be economic, legal, or human in nature, but we intend them to be productive for the people that use them. The proof of GOP leadership in this area will be measured by how much better American lives become.

This same focus on action can be applied to national and homeland security. In the wake of recent events, it is imperative that our country be prepared for conflict, and this includes establishing a Department of Homeland Security that is staffed and ready to operate. Unfortunately, we were delayed in appointing Tom Ridge to his position as Secretary as a result of Democratic arguments over issues of committee control. Though his confirmation did eventually come through, it was reached in a way that demonstrated divisiveness. I expect that from this point onward, the interests of the United States and its people will dominate Senate debate with a new majority compelled by goals such as defending the country against terrorism and reducing our dependence on Middle Eastern oil.

As Republicans, we receive much of our direction from President Bush. The election that put both the House and Senate in GOP hands had the effect of reaffirming popular support for the Commander-in-Chief. Without losing its independence, Congress is now able to cooperate more successfully with the White House to move legislation out of theory and into practice. This arrangement simultaneously furthers the congressional agenda and that of the President's administration. In this way, the federal leadership decision Americans made in November is doubly important because it serves to sustain the strength of both the executive and legislative branches. For congressional members, the consequence of the 2002 election is that the public has both bestowed on us, and now demands from us, the responsibility of national stewardship. Our mandate is, therefore, directly correlated to last fall's election.

In this discussion on leadership, it is important to note the recent circumstances surrounding the Senate Majority Leader. The poorly chosen words of Senator Trent Lott and the scandal they sparked forced the GOP to critically and internally assess its message. We have chosen to view this situation as an opportunity to again concentrate our efforts on communicating our vision to America. It has allowed the Party leadership, the core of our organization, to reassert our agenda. The capability and efficacy of Congress in shepherding legislation is, in turn, mutually reinforcing to President Bush's position as a leader.

In the United States of America, we are truly fortunate to participate in the leadership of our government through the electoral process and to choose our political destiny. According to this process, the people who cast their ballots in 2002 have spoken and selected the Republican Party. ♦

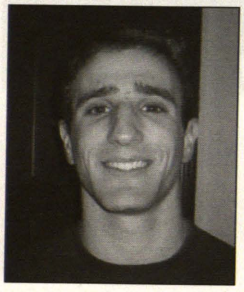
As Republicans, we receive much of our direction from President Bush.

TOWARDS A NEW ENVIRONMENTAL STRAGEGY

• • •

Refocusing Reformers in the Face of Political Reality

by Steven Siger



For years the pro-environment lobby has fought to preserve our natural resources as we deplete them ever faster. In particular, the problem of global warming has been an extraordinarily important issue for environmentalists. Study after study conducted by leading scientists has shown that global warming is a real phenomenon. The release of greenhouse gases into our environment is causing global climate change. Proof of this change abounds. The permafrost in Alaska is no longer permanent. Glaciers and polar ice are melting as they never have before. Nearly all scientists accept global warming as fact; the general public is not far behind. In short, environmentalists have done extremely well in getting the word out. They have come up short, however, in enacting policy change.

Why have environmentalists been so unsuccessful in translating their cause into action? It comes down to basic politics. The environment is not an issue that wins or loses elections. Global warming is a problem that will affect us in the long term. Climate change is likely to occur over the next 50 years that can be prevented with action now. Unfortunately, national elections happen every two, four, or six years, so politicians cannot afford to wait half a century to show results to their constituents. Instead, they expend most of their energy on visible issues like the economy and national security – issues that engender more immediate responses among their electorate. In the meantime, the cause of environmentalism is ignored.

The Bush administration has clearly revealed its position on global warming by successively pulling out of the Kyoto Protocol to the United Nations Framework Convention on Climate Change, proposing an energy policy that would allow for greater emissions of greenhouse gasses, weakening the watershed Clean Air Act, and, most recently, claiming that global warming requires ten more years of study before the government will begins to take preventative action. All of this has been done to help businesses and, ostensibly, the economy. As business is cheaper and therefore more cost-effective with fewer environmental restrictions, the Bush administration can appease its big business constituents with lax environmental policy while claiming to aid the ailing economy. As a result, the current administration has subverted the long-term worry of global warming to the short-term issue of the economy.

Clearly, the current methods that environmentalists use to enact policy changes are not working. The environment alone is unfortunately not important to enough politicians to prompt action. For this reason, I recommend a change in strategy for the environmental cause. Instead of trying to force the environment to the forefront as an independent issue as has failed in the past, preservationists should make the environment a vital component of issues already earmarked as pressing and important.

Today's world presents environmental lobbyists with a golden opportunity to do exactly this. National security is an extremely prominent issue, and the threat of Third World, fundamentalist terrorism is immediate to all Americans. I am convinced that one of the roots of this type of terrorism is also at the root of global warming. It may be possible to alleviate both problems with one concerted action.

I speak, of course, of American oil consumption. Since September 11, nearly everyone has recognized the fragility of American dependence on foreign oil. Today we im-

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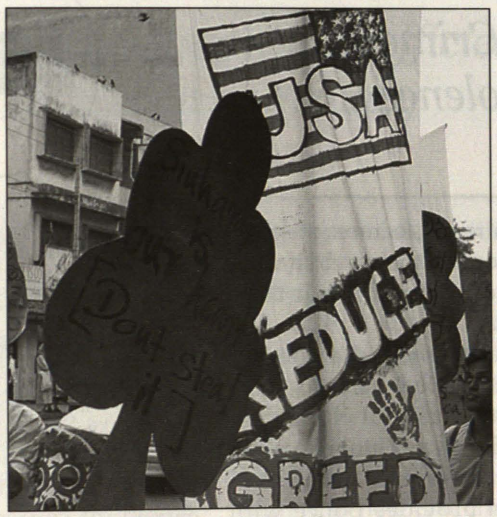
port nearly 50 percent of our oil supplies—the largest percentage in our nation's history. Much of this oil comes from the Middle East. Indeed, the largest single producer of oil in the world today is Saudi Arabia. This is the same Saudi Arabia that raised Osama Bin Laden and the majority of the September 11 hijackers, and that only allows fundamentalist anti-democratic Islam to be taught in its schools. Saudi Aradia is nevertheless one of America's closest allies in the Middle East. On the surface this makes little sense. Why does the United States support a country that shares none of its democratic ideals? The answer is simple: oil.



This unwavering support for the Saudi Arabian dictatorship is unfortunately coming back to haunt the United States. Thomas Friedman of the New York Times has argued that America's support of Middle Eastern repression and dictatorship while being a beacon of freedom and democracy has caused the disillusionment with America among youths of the Arab world. It is some of these disillusioned youths that hijacked the planes on September 11 and attacked the United States. I by no means suggest that the United States brought the attacks of September 11 upon itself; I do, however, argue that to combat this new type of fundamentalist terrorism, the United States must work at the source. America should support democracy, not dictatorship, and freedom, not repression in the Middle East; only then will the people of that region begin to ease their hatred of the United States. Our government unfortunately cannot enact these policy changes right now. Why not? America is more dependent than ever on the oil provided by these repressive dictatorships.

I give the Bush administration credit for recognizing our dependence on foreign oil as a problem. I do not, however, give the administration credit for its proposed solution. Drilling in the Arctic National Wildlife Refuge (ANWR) and destroying a pristine natural habitat in the process will not greatly reduce our consumption of foreign oil. In fact, with consumption increasing at the current rate, by the time ANWR begins producing an appreciable amount of oil nearly 20 years from now, the rate of American dependence on oil imports will not change appreciably. The most obvious way to solve American reliance on foreign oil is also the way to help control the problem of global warming: pursue renewable sources of energy. America would be well served by spending its money on research into new technologies such as hydrogen fuel cells. Though critics claim that such technologies will only be viable in the long term, the proposed alternative (drilling in ANWR) is by no means a short-term solution. There is no reason to believe that technological innovation would require either more time or more money than opening Alaska's wilderness for oil exploration. Most importantly, the pursuit of renewable energy sources can address pressing national security concerns while at the same time combating global climate change.

The environmental community should pursue this type of argument. It is eminently clear that politics preclude caring about the environment in its own right. In order to make a difference, lobbyists for the environment need to recognize which issues are important to the nation. Global warming, national energy policy, and their intimate relationship with national security are a good place to start. To make a difference in the environment, lobbyists must pose their aims as symbiotic to the overall goals of the nation. Only then will meaningful change in environmental policy occur. ♦

The most obvious way to solve American reliance on foreign oil is also the way to help control the problem of global warming: pursue renewable sources of energy.

BALLISTICS FINGERPRINTING

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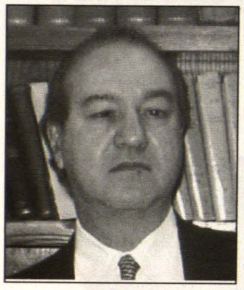
Towards Solving Gun Crimes and Reducing Gun Violence

by Ron Pinciaro

POINT



The widespread news coverage of the Beltway Sniper case and the upcoming trials stemming from those events has rekindled national debate on ballistics fingerprints, the unique impressions made by a firearm on the bullets that it fires.

This new technology played a critical role in helping to apprehend the Beltway shooters and will provide important evidence for prosecuting their crimes. One would think that this good news would produce enthusiasm for a national database of these fingerprints to be used as a law enforcement tool potentially as important as DNA testing. So why aren't things happening in this way?

Unfortunately, the National Rifle Association (NRA) responds to ballistics fingerprinting the same way that it has responded to other legislation related to firearms. Its first reflex is to say "no way;" only afterwards does it come up with its arguments. These arguments do not have to be sensible. The NRA's official list of talking points is just there to provide cover for the politicians who do not dare cross it.

In the case of ballistics fingerprinting, the NRA offers three principle objections: the system is unworkable, it is too expensive, and criminals can easily obliterate the fingerprint. (In case criminals are not competent in this area, Gunsafe, a Connecticut pro-gun group, already features step-by-step instructions on their web site that demonstrate one way to change these fingerprints).

With respect to the first argument, we know that efficient ballistics technology exists and that it already works. The Beltway Sniper case is clear evidence of this. Matching bullets to a gun provides police with clues that can be instrumental in finding a killer. In an incident in Los Angeles recently, an armed robber was arrested in a restaurant break-in. The region's ballistic database was able to match the gun to a series of other robberies, which resulted in successful prosecution and conviction. In Boston, fifteen crimes were linked to one seized weapon, and in New Orleans ballistic fingerprinting helped convict eleven gang members who had gone on a deadly killing spree.

A May 2002 report from the Bureau of Alcohol, Tobacco, and Firearms stated, "Numerous violent crimes involving firearms have been solved through use of the [National Integrated Ballistics Information Network], many of which would not have been solved without it." No fair-minded person can argue that such a system is not beneficial. As with other technological developments, such as DNA evidence, the process will inevitably continue to improve as scientists work with it. The capability certainly exists. The national database only needs to be created.

Only the most biased observer would be convinced by the argument of monetary expense. DNA testing, normal fingerprinting databases, and most other forms of forensic testing are expensive. Their usefulness outweighs the cost. Over 28,000 Americans are killed in shootings every year and four times as many are injured. These deaths and injuries are expensive because they involve an enormous cost that brings no incremental value to society.

As far as the third objection is concerned, of course criminals can file down a gun's markings to obliterate the ballistics fingerprints. That's not a reason to abandon the technology. Criminals also obliterate Vehicle Identification Numbers on cars. Should we stop recording these important identifying serial numbers and allow such alterations to be legal?

Ballistics fingerprinting is an important new technology for law enforcement to use in an area of extremely violent crime. A House of Representatives bill – The Gun Ballistics Safety Act – would have the Bureau of Alcohol, Tobacco, and Firearms establish an electronic database of the ballistic characteristics of guns. Congressman Robert Andrews (D-NJ) originally introduced the bill in 2001. At that time, it was quickly shelved. Given recent events, it now has 17 co-sponsors. With the NRA poised for vehement opposition, progress will be difficult at best. But the American people – those who own guns for valid reasons as well as those who have never fired a gun – want and deserve this protection. Our democracy cannot afford to let the self-serving interests of the NRA and their strangleholds on our lawmakers prevent us from using this science to improve our safety and quality of life. ♦

Ron Pinciaro is Co-Executive Director of the Connecticut Collaborative for Education against Gun Violence.

BALLISTICS FINGERPRINTING

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An Unnecessary and Inefficient Invasion of Privacy

by Tiffany Clay

COUNTER POINT

My suburban home is situated between Baltimore and Washington, D.C.—two cities that provide case studies for the danger of guns when they fall into the wrong hands. Baltimore averages at least one murder each day; Washington, D.C. was recently targeted by snipers who rampaged through its suburbs. Meanwhile, lawmakers in Washington are trying to make guns a harmonious part of society with the creation of a national gun database, a type of ballistic fingerprinting system. Should their efforts make me feel safer?

The proposal does not make me feel safer. I am skeptical of the idea to test-fire every newly sold gun in America and record the distinctive mark made by the barrel of that gun on a bullet. This proposal is neither effective nor desirable.

For such a system to work, the mark the gun barrel makes on the bullet must be consistent. A recent study by the state of California, however, found that the image the barrel makes can be purposely altered with acid or files, and that the normal wear-and-tear on a gun after repeated use can furthermore alter the barrel's mark. Thus, it is questionable whether marks on a bullet found at a crime scene could be successfully matched to the gun from which it fired.

Moreover, evidence suggests that illegal guns have a significant damaging effect on society, a problem not directly addressed by the proposed database. A survey conducted in 1991 found that 28 percent of prison inmates had used illegally obtained firearms in their crimes. In addition, since 1970 the FBI estimates that over 3 million guns have been stolen. It is important to note that crime with *illegal* guns cannot be solved by a national gun database, which only accounts for *legal* guns.

Regardless of whether the proposed database would be effective, we must ask ourselves if such a database is even desirable. The answer to this question is also a firm "No." With the introduction of a national gun database, lawmakers now want to track people who have yet to commit any crime and whose possession of the firearm is entirely legal. This proposal is completely unwarranted and will too often place the burden of guilt on innocent citizens.

Less than a decade ago, "red light cameras" were installed throughout America to capture drivers running red lights in the act of breaking the law. The proposed gun database is analogous to a camera following the car at all times and anticipating a possible infraction along the way, as opposed to waiting for the car to reach the red light. Of course, this does not directly affect the driver unless he commits a crime just as a gun database does not directly affect a gun owner unless he misuses his gun. Yet we must ask: does a database create a watchdog at the expense of personal liberty?

Though I agree that a necessary balance between security and liberty is needed, there are some liberties – namely those named in our Constitution and the Bill of Rights – which our nation's founders deemed essential to the continued strength of our democratic system. To quote the venerable statesman Benjamin Franklin: "They that can give up essential liberty to obtain a little temporary safety deserve neither liberty nor safety."

Despite my concerns about the effectiveness and desirability of the proposed national gun database, it is clear that the problem of gun violence in America must be addressed. Perhaps this problem can be solved by more conventional means. Instead of spending exorbitant amounts of money to create a database of dubious effectiveness, why not spend more money to catch those people who have actually committed a crime? Instead of trying to deter gun crimes by making a database of innocent gun owners, why not increase money spent on the prosecution and punishment of criminals? This idea worked in Richmond, Virginia where the city's zero-tolerance pilot program from 1997 to 2000 resulted in a 40 percent decrease in shootings and the indictment of 404 people on gun charges. These results present a clear contrast to those in Maryland where, despite spending $5 million over the past two years on a statewide gun database, the crime rate remains at an all-time high.

In short, let's fix the problem using conventional methods instead of cataloguing and analyzing it ad infinitum. One thing in this debate that is clear: the people of Baltimore, Washington, D.C., and throughout America cannot wait. ♦

Tiffany Clay is a freshman in Saybrook College. She is the Chief Whip of the Tory Party of the Yale Political Union.

THE FINAL WORD

The Potential for Real Democracy in Iran

by Sam Asher and David White

Editors-in-Chief

In the last few months, the attention of the Bush national security team has clearly extended its war on terrorism to include not only international terrorist organizations, but rogue states who refuse to comply with the international establishment. Iraq and Saddam Hussein have been fingered as the regime most dangerous to U.S. interests and security. In a distant second place is North Korea, a nation that has repeatedly threatened and blackmailed the United States, and seems to have the weapons arsenal to back it up. But many will remember that the Bush administration considers a third nation to be in this exclusive group: Iran.

Without a doubt, the current regime in Iran is marked by the three characteristics that seem to define the "axis of evil": authoritarianism, terrorist intentions and the desire to acquire weapons of mass destruction. Ever since the foundation of the Islamic Republic in 1979, a single Grand Ayatollah has had virtually complete control of the political power. According to the U.S. State Department, Iran is the world's "most active state sponsor of terrorism," providing funding, weapons, training, and sanctuary to such groups as Hezbollah, Hamas, and Islamic Jihad. The CIA asserts that Iran has an active biological weapons programs and possesses short-range ballistic missiles capable of delivering such agents. Amidst claims of "peaceful purposes," Iranian President Muhammad Khatami announced on February 9 that Iran was determined to develop nuclear technology.

But in one very important aspect, Iran differs from both Iraq and North Korea: it shows potential for self-imposed political change. After 24 years of rule by the ayatollahs, the people of Iran are becoming increasingly resistant to the hard-line, fundamentalist leadership. Student protests, which marked the revolution of 1979, have repeatedly sprung up in the last two years to condemn government policy, no small occurrence in a country that only sanctions staged, pro-government protests. And unlike other in Muslim nations, Iranians feel some sense of ownership over their government and therefore know whom the target of their discontent should be: not the U.S., but their own leaders.

The pale existence of democracy in Iran only augments the possibility of reform. In 1997 and 2001, the people of Iran overwhelmingly elected Mohammad Khatami to the presidency. Although he won nearly 70 percent of the vote, the Iranian government had disqualified 234 out of 238 candidates prior to the election. Such practices are a far cry from true democracy. Furthermore, Khatami has failed to deliver the reformist platform upon which he gained his significant popularity. During his presidency, newspapers have been banned, satellite dishes have been confiscated, political dissidents have been jailed, and the legal age of marriage remains only nine-years old for females.

Nevertheless, even a slight hint of democracy can serve as the trickle that starts the flood. The people have tasted what it means to pick their own leadership and show every sign of wanting more. In addition, the foundations for a true democracy are there. Were reform to come, free elections would not seem as foreign an institution in Iran as they have been to new governments like Afghanistan.

This is not to say that the rest of the world should sit back and watch Iran transform itself. The clerics still have a very strong hold on the government, and have demonstrated little intention to relinquish their power. The release of Grand Ayatollah Montazeri on January 29 was a positive sign, as are student protests, but these events do not necessarily mark the beginning of significant, internally motivated change. The United States and the other powers in the world must play an active role if any change is to transpire.

The articulated State Department approach to Iran is a dual-track policy that opposes Iran's unacceptable behavior while "laying out a positive vision of partnership and support for the Iranian people who are pressing for greater freedom and democracy." The "positive vision" laid out by the U.S., however, requires focus and implementation for it to prove truly effective. For all of its promise, Iran will not change without organized and steady pressure from the international community. Such an accomplishment would definitively demonstrate that the United States is dedicated to building democracy in the Arab world, not only through war, but also through peaceful means. ♦

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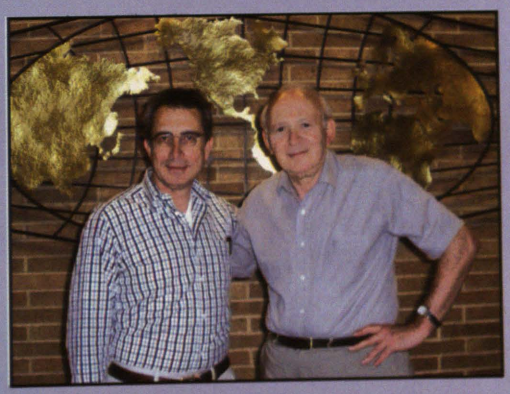

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